

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES				1. REQUISITION NO.		PAGE 1 OF 62	
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30							
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NO.		5. SOLICITATION NUMBER 36C10B26Q0130	
						6. SOLICITATION ISSUE DATE 04-22-2026	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME William Waterhouse, Contract Specialist				b. TELEPHONE NO. (No Collect Calls) 848.377.5097	
						8. OFFER DUE DATE/LOCAL TIME 04-28-2026 1000 EDT	
9. ISSUED BY Department of Veterans Affairs Technology Acquisition Center 23 Christopher Way Eatontown NJ 07724				CODE 36C10B 10. THIS ACQUISITION IS ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM ☐ EDWOSB ☐ 8(A) NAICS: 541519 SIZE STANDARD: 150 Employees			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		☐ 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) 13b. RATING N/A		14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP	
15. DELIVER TO See Delivery Schedule				16. ADMINISTERED BY Department of Veterans Affairs Technology Acquisition Center 23 Christopher Way Eatontown NJ 07724			
17a. CONTRACTOR/OFFEROR TBD		CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY Department of Veterans Affairs Technology Acquisition Center Financial Services Center PO Box 149971 Austin TX 78714-8971 PHONE: FAX:	
						CODE 36C10A	
TELEPHONE NO. UEI: EFT:				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER							
19. ITEM NO.		20. SCHEDULE OF SUPPLIES/SERVICES See CONTINUATION Page		21. QUANTITY		22. UNIT	
		TITLE: Enterprise ID.me Software Subscriptions and Support See Schedule B Alternate POC: Kendra.Casebolt@va.gov Brand Name: ID.me (Use Reverse and/or Attach Additional Sheets as Necessary)				23. UNIT PRICE	
						24. AMOUNT	
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Govt. Use Only)	
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED						☐ ARE ☒ ARE NOT ATTACHED. ☐ ARE ☐ ARE NOT ATTACHED	
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) KENDRA M. CASEBOLT Contracting Officer		31c. DATE SIGNED	

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SECTION B - CONTINUATION OF SF 1449 BLOCKS**B.1 CONTRACT ADMINISTRATION DATA**

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR: TBD

b. GOVERNMENT: Contracting Officer 36C10B
Department of Veterans Affairs
Technology Acquisition Center
23 Christopher Way
Eatontown NJ 07724

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with (IAW):

- ☒ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or
☐ 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

- a. Quarterly ☐
b. Semi-Annually ☐
c. Other ☒ After Government acceptance of Deliverables in
Section B.4 - Price Schedule and IAW
Section B.5 - Product Description

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically IAW VA Acquisition Regulation (VAAR) Clause 852.232-72 Electronic Submission of Payment Requests.

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 GOVERNING LAW CLAUSE

Federal law and regulations, including the Federal Acquisition Regulations (FAR), shall govern this Contract/Order. Commercial license agreements may be made a part of this Contract/Order but only if both parties expressly make them an addendum hereto. If the commercial license agreement is not made an addendum, it shall not apply, govern, be a part of or have any effect whatsoever on the Contract/Order; this includes, but is not limited to, any agreement embedded in the computer software (clickwrap), any agreement that is otherwise delivered with or provided to the Government with the commercial computer software or documentation (shrinkwrap), or any other license agreement otherwise referred to in any document. If a commercial license agreement is made an addendum, only those provisions addressing data rights regarding the Government's use, duplication and disclosure of data (e.g., restricted computer software) are included and made a part of this Contract/Order, and only to the extent that those provisions are not duplicative or inconsistent with Federal law, Federal regulation, the incorporated FAR clauses and the provisions of this Contract/Order; those provisions in the commercial license agreement that do not address data rights regarding the Government's use, duplication and disclosure of data shall not be included or made a part of the Contract/Order. Federal law and regulation including, without limitation, the Contract Disputes Act (41 U.S.C. § 7101 et seq.), the Anti-Deficiency Act (31 U.S.C. § 1341 et seq.), the Competition in Contracting Act (41 U.S.C. § 3301 et seq.), the Prompt Payment Act (31 U.S.C. § 3901 et seq.), Contracts for Data Processing or Maintenance (38 USC § 5725), Source Code Harmonization and Reuse in Information Technology Act "SHARE IT Act" (P.L. 118-187), and FAR clauses 52.212-4, 52.227-14 shall supersede, control, and render ineffective any inconsistent, conflicting, or duplicative provision in any commercial license agreement. In the event of conflict between this clause and any provision in the Contract/Order or the commercial license agreement or elsewhere, the terms of this clause shall prevail. The Contractor shall deliver to the Government all data first produced under this Contract/Order with unlimited rights as defined by FAR 52.227-14, this includes any custom code developed for the purpose of performing under this contract. Claims of patent or copyright infringement brought against the Government as a party shall be defended by the U.S. Department of Justice (DOJ) in accordance with 28 U.S.C. § 516; at the discretion of DOJ, the Contractor may be allowed reasonable participation in the defense of the litigation. Any additional changes to the Contract/Order must be made by modification (Standard Form 30) and shall only be made by a warranted Contracting Officer. Nothing in this Contract/Order or any commercial license agreement shall be construed as a waiver of sovereign immunity.

B.3 SOFTWARE LICENSE, SOFTWARE MAINTENANCE, AND SOFTWARE TECHNICAL SUPPORT

(1). Definitions.

- a) **Licensee.** The term “licensee” shall mean the U.S. Department of Veterans Affairs (“VA”) and is synonymous with “Government.”
- b) **Licensor.** The term “licensor” shall mean the Contractor having the necessary license or ownership rights to deliver license, software maintenance and support of the computer software being acquired. The term “Contractor” is the party identified in Block 17a on the SF1449. If the Contractor is a reseller and not the Licensor, the Contractor remains responsible for performance under this Contract/Order.
- c) **Software.** The term “software” shall mean the licensed computer software product(s) cited in the Schedule of Supplies/Services.
- d) **Maintenance.** The term “maintenance” is the process of enhancing and optimizing software, as well as remedying defects. It shall include all new fixes, patches, releases, updates, versions and upgrades, as further defined below.
- e) **Technical Support.** The term “technical support” refers to the range of services providing assistance for the software via the telephone, email, a website or otherwise.
- f) **Release or Update.** The term “release” or “update” are terms that refer to a revision of software that contains defect corrections, minor enhancements, or improvements of the software’s functionality. This is usually designated by a change in the number to the right of the decimal point (e.g., from Version 5.3 to 5.4). An example of an update is the addition of new hardware.
- g) **Version or Upgrade.** The term “version” or “upgrade” are terms that refer to a revision of software that contains new or improved functionality. This is usually designated by a change in the number to the left of the decimal point (e.g., from Version 5.4 to 6).

(2). Software License.

- a) Notwithstanding any contrary provisions contained in the Contractor's standard commercial license or lease agreement, the Contractor agrees that the Government will have the rights that are set forth in paragraph (e) of this clause to use, duplicate or disclose any commercial computer software delivered under this contract. The terms and provisions of this contract shall comply with Federal laws and the Federal Acquisition Regulation.
- b) Unless otherwise stated in the Schedule of Supplies/Services, the Product Description, the software license provided to the Government is a perpetual, nonexclusive license to use the software.
- c) The Government may use the software in a networked environment.
- d) All limitations of software usage are expressly stated in the Schedule of

Supplies/Services and the Product Description.

- e) The commercial computer software delivered under this contract may not be used, reproduced, or disclosed by the Government except as provided below or as expressly stated otherwise in this contract. The commercial computer software may be-
 - i. Used or copied for use with the computer(s) for which it was acquired, including use at any Government installation or agency to which the computer(s) may be transferred;
 - ii. Used or copied for use with a backup computer if any computer for which it was acquired is inoperative;
 - iii. Reproduced for safekeeping (archives) or backup purposes;
 - iv. Modified, adapted, or combined with other computer software;
 - v. Disclosed to and reproduced for use by support service Contractors or their subcontractors, subject to the same restrictions set forth in this contract; and
 - vi. Used or copied for use with a replacement computer.
- f) Unauthorized Obligations.
 - i. Except as stated in paragraph (ii), when any supply or service acquired under this contract is subject to any commercial supplier agreement (as defined in 502.101) that includes any language, provision, or clause requiring the Government to pay any future fees, penalties, interest, legal costs or to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:
 - 1) Any such language, provision, or clause is unenforceable against the Government.
 - 2) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the commercial supplier agreement. If the commercial supplier agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.
 - 3) Any such language, provision, or clause is deemed to be stricken from the commercial supplier agreement.
 - ii. Paragraph (u)(1) of this clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.
- g) Commercial supplier agreements unenforceable clauses.

- i. This agreement is a part of a contract between the commercial supplier and the U.S. Government for the acquisition of the supply or service that necessitates a license or other similar legal instrument (including all contracts, task orders, and delivery orders under FAR 12).
- ii. *End user.* This agreement shall bind the ordering activity as end user but shall not operate to bind a Government employee or person acting on behalf of the Government in his or her personal capacity.
- iii. *Law and disputes.* This agreement is governed by Federal law. Any language purporting to subject the U.S. Government to the laws of a U.S. state, U.S. territory, district, or municipality, or a foreign nation, except where Federal law expressly provides for the application of such laws, is hereby deleted.
 - 1) Any language requiring dispute resolution in a specific forum or venue that is different from that prescribed by applicable Federal law is hereby deleted. Any dispute regarding the license grant or usage limitations shall be resolved in accordance with the Disputes Clause incorporated in FAR 52.212-4(d).
 - 2) Any language prescribing a different time period for bringing an action than that prescribed by applicable Federal law in relation to a dispute is hereby deleted.
 - 3) *Continued performance.* The supplier or licensor shall not unilaterally revoke, terminate or suspend any rights granted to the Government except as allowed by this contract. If the supplier or licensor believes the ordering activity to be in breach of the agreement, it shall pursue its rights under the Contract Disputes Act or other applicable Federal statute while continuing.
 - 4) *Arbitration; equitable or injunctive relief.* In the event of a claim or dispute arising under or relating to this agreement, a binding arbitration shall not be used unless specifically authorized by agency guidance, and equitable or injunctive relief, including the award of attorney fees, costs or interest, may be awarded against the U.S. Government only when explicitly provided by statute (e.g., Prompt Payment Act or Equal Access to Justice Act).
- iv. *Updating terms.* After award, the contractor may unilaterally revise commercial supplier agreement terms if they are not material. A material change is defined as:
 - 1) Terms that change Government rights or obligations;
 - 2) Terms that increase Government prices;
 - 3) Terms that decrease overall level of service; or

- 4) Terms that limit any other Government right addressed elsewhere in this contract.
 - 5) For revisions that will materially change the terms of the contract, the revised commercial supplier agreement must be incorporated into the contract using a bilateral modification.
 - 6) Any agreement license terms or conditions unilaterally revised subsequent to award that are inconsistent with any material term or provision of this contract shall not be enforceable against the Government, and the Government shall not be deemed to have consented to them.
- v. *No automatic renewals.* If any license or service tied to periodic payment is provided under this agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express consent by an authorized Government representative.
 - vi. *Indemnification.* Any clause of this agreement requiring the commercial supplier or licensor to defend or indemnify the end user is hereby amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.
 - vii. *Audits.* Any clause of this agreement permitting the commercial supplier or licensor to audit the end user's compliance with this agreement is hereby amended as follows:
 - 1) Discrepancies found in an audit may result in a charge by the commercial supplier or licensor to the ordering activity. Any resulting invoice must comply with the proper invoicing requirements specified in the underlying Government contract or order.
 - 2) This charge, if disputed by the ordering activity, will be resolved in accordance with FAR 52.212-4(d); no payment obligation shall arise on the part of the ordering activity until the conclusion of the dispute process.
 - 3) Any audit requested by the contractor will be performed at the contractor's expense, without reimbursement by the Government.

(3). Software Maintenance and/or Technical Support.

- a) If the Government desires to continue software maintenance and support beyond the period of performance identified in this Contract/Order, the Government will issue a separate contract or order for maintenance and support. Conversely, if a contract or order for continuing software maintenance and technical support is not received, the Contractor is neither authorized nor permitted to renew any of the previously furnished services.

- b) The Contractor shall provide software support services, which includes periodic updates, enhancements and corrections to the software, and reasonable technical support, all of which are customarily provided by the Contractor to its commercial customers to cause the software to perform according to its specifications, documentation or demonstrated claims.
- c) Any telephone support provided by Contractor shall be at no additional cost.
- d) The Contractor shall provide all maintenance services in a timely manner in accordance with the Contractor's customary practice or as defined in the Product Description. However, prolonged delay (exceeding two business days) in resolving software problems will be noted in the Government's various past performance records on the Contractor (e.g., www.cpars.gov).
- e) If the Government allows the maintenance and support to lapse and subsequently wishes to reinstate it, any reinstatement fee charged shall not exceed the amounts that would have been charged if the Government had not allowed the subscription to lapse.

(4). Disabling Software Code.

The Government requires delivery of computer software that does not contain any code that will, upon the occurrence or the nonoccurrence of any event, disable the software. Such code includes but is not limited to a computer virus, restrictive key, node lock, time-out, or other function, whether implemented by electronic, mechanical, or other means, which limits or hinders the use or access to any computer software based on residency on a specific hardware configuration, frequency of duration of use, or other limiting criteria. If any such disabling code is present, the Contractor agrees to indemnify the Government for all damages suffered as a result of a disabling caused by such code, and the contractor agrees to remove such code upon the Government's request at no extra cost to the Government. Inability of the Contractor to remove the disabling software code will be considered an inexcusable delay and a material breach of contract, and the Government may exercise its right to terminate for cause. In addition, the Government is permitted to remove the code as it deems appropriate and charge the Contractor for consideration for the time and effort expended in removing the code.

(5). Manuals and Publications.

Upon Government request, the Contractor shall furnish the most current version of the user manual and publications for all products/services provided under this Contract/Order at no cost.

B.4 PRICE SCHEDULE

Any resulting contract will be awarded on a firm-fixed-price basis as defined by FAR Subpart 16.202. Accordingly, the Offeror's shall ensure that any and all costs associated with the Offeror's proposed application(s), software products, software solution, and/or system, shall be included in the Offeror's proposed firm-fixed price, and shall serve as the Offeror's firm-fixed price for the entire period of performance of any resulting contract. No additional costs or fees relative to the Offeror's proposed application(s), software products, software solution, and/or system including, but not limited to, licensing costs and any associated licensing maintenance required for the development, delivery, integration, operation, and/or maintenance of the Offeror's proposed solution will be allowed, accepted, and/or paid by the Government.

NOTE: Offerors are instructed to complete Section B.4 and submit with their quote. Offerors are cautioned that alterations to the line items as specified below may render quotes unacceptable and therefore, ineligible for award. Please be advised that any successful Offeror's Section B.4 submitted in response to this solicitation will be incorporated into any resulting award and thereby serve as the Offeror's firm-fixed-pricing for the entire period of performance of any resultant contract.

All questions shall be directed to the Contract Specialist, William Waterhouse at William.Waterhouse@va.gov and Contracting Officer, Kendra M. Casebolt at Kendra.Casebolt@va.gov, prior to the closing date and time specified in Block 8 on page 1 of SF 1449.

Inspection and Acceptance: DESTINATION

BASE PERIOD					
Period of Performance shall be 12-months from effective date of award					
All products/services shall be in accordance with Section B.5 <i>PRODUCT DESCRIPTION</i> titled, "Enterprise ID.me Software Subscriptions and Support," dated March 10, 2026, PD Version Number: 2.0					
*NSP = Not Separately Priced					
CLIN	Description / Part Number (P/N)	QTY	Unit	Unit Price	Extended Price
0001	Credential Broker License - Annual Active and Passive Broker Credential Broker Subscription P/N: IDME-CBL-0004	1	EA	\$	\$
0002	IT Identity Proofing: New Users Subscription IT Funded: The Subscriptions shall be governed by the application. Examples of applications are provided below. ITOPS/password Lighthouse (APIs) VA.gov P/N: IDME-LOA3I-0004S	Up to 600,000	EA	\$	\$

0003	Identity Proofing Renewal Users Subscription IT Funded: Renewal User licenses (LOA3 / IAL2), covering previously identity proofed users (at VA or any other agency) who do not have an active license and access VA services. P/N: IDME-LOA3R-0001S	Up to 4,250,000	EA	\$	\$
0004	<u>Deliverable</u> : Bi-weekly Snapshot Report. Due 7 days After Receipt of Order (ARO) and bi-weekly thereafter. Electronic submission to: VA PM, COR, CO.	1	LT	*NSP	*NSP
0005	<u>Deliverable</u> : Monthly Subscription Usage Report Due 30 days ARO and due monthly thereafter. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
0006	<u>Deliverable</u> : Service Level Agreement (SLA) Monitoring Plan Due monthly Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
0007	<u>Deliverable</u> : SLA Report Due monthly Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
0008	<u>Deliverable</u> : User Support Report Due monthly Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
0009	<u>Deliverable</u> :MFA Monthly Status Report Due monthly Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
TOTAL BASE PERIOD					\$

BASE PERIOD OPTIONAL TASKS

These optional tasks may be exercised in accordance with (IAW) FAR 52.217-7, Option for Increased Quantity-Separately Priced Line Item (MAR 1989), at the Government's discretion, at any time, multiple times, and from time to time, during the BASE PERIOD, up to the maximum quantity specified for CLINs 0010 - 0013. CLINs 0014 and 0015 may be exercised, at the Government's discretion, at any time, and only one time each, during the BASE PERIOD.

All products/services shall be IAW Section B.5 *PRODUCT DESCRIPTION* titled, "Enterprise ID.me Software Subscriptions and Support," dated March 10, 2026, PD Version Number: 2.0

CLIN	Description / Part Number (P/N)	QTY	Unit	Unit Price	Extended Price
0010	IT Optional Task - Identity Proofing: New Users Subscription P/N: IDME-LOA3I-0004S	Up to 400,000	EA	\$	\$
0011	IT Optional Task - Identity Proofing: Renewal Users Subscription P/N: IDME-LOA3R-0001S	Up to 2,000,000	EA	\$	\$
0012	IT Optional Task - Identity Proofing: New Users Subscription P/N: IDME-IAL2I-0004S	Up to 60,000	EA	\$	\$
0013	IT Optional Task - Identity Proofing: Renewal Users Subscription P/N: IDME-IAL2R-0001S	Up to 90,000	EA	\$	\$
0014	MFA Event increase by 5 million P/N: IDME-AAL2-007	1	EA	\$	\$
0015	MFA Event increase by 10 million P/N: IDME-AAL2-008	1	EA	\$	\$
TOTAL BASE PERIOD OPTIONAL TASKS					\$

OPTION PERIOD 1

This 12-Month option period may be exercised in accordance with (IAW) FAR 52.217-9 Option to Extend the Term of the Contract (MAR 2000). Work shall not commence until, and unless, a formal modification is issued by the Contracting Officer. If exercised, this option period shall commence immediately upon the expiration of the BASE PERIOD.

All products/services shall be IAW Section B.5 *PRODUCT DESCRIPTION* titled, "Enterprise ID.me Software Subscriptions and Support," dated March 10, 2026, PD Version Number: 2.0

CLIN	Description / Part Number (P/N)	QTY	Unit	Unit Price	Extended Price
1001	Credential Broker License - Annual Active and Passive Broker Credential Broker Subscription P/N: IDME-CBL-0004	1	EA	\$	\$

1002	IT Identity Proofing: New Users Subscription IT Funded: The Subscriptions shall be governed by the application. Examples of applications are provided below. ITOPS/password Lighthouse (APIs) VA.gov P/N: IDME-IAL2I-0004S	Up to 580,000	EA	\$	\$
1003	Identity Proofing Renewal Users Subscription IT Funded: Renewal User licenses (LOA3 / IAL2), covering previously identity proofed users (at VA or any other agency) who do not have an active license and access VA services. P/N: IDME-IAL2R-0001S	Up to 4,550,000	EA	\$	\$
1004	<u>Deliverable</u>: Bi-weekly Snapshot Report. When VA exercises the Option period the report will be due bi-weekly. Electronic submission to: VA PM, COR, CO.	1	LT	*NSP	*NSP
1005	<u>Deliverable</u>: Monthly Subscription Usage Report When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
1006	<u>Deliverable</u>: Service Level Agreement (SLA) Monitoring Plan When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
1007	<u>Deliverable</u>: SLA Report When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
1008	<u>Deliverable</u>: User Support Report When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP

1009	<u>Deliverable</u> :MFA Monthly Status Report When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
TOTAL OPTION PERIOD 1					\$
OPTION PERIOD 1 OPTIONAL TASKS These optional tasks may be exercised in accordance with (IAW) FAR 52.217-7, Option for Increased Quantity-Separately Priced Line Item (MAR 1989), at the Government's discretion, at any time, multiple times, and from time to time, during OPTION PERIOD 1, up to the maximum quantity specified for CLINs 1010 and 1011. CLINs 1012 and 1013 may be exercised, at the Government's discretion, at any time, and only one time each, during OPTION PERIOD 1. All products/services shall be IAW Section B.5 <i>PRODUCT DESCRIPTION</i> titled, "Enterprise ID.me Software Subscriptions and Support," dated March 10, 2026, PD Version Number: 2.0					
CLIN	Description / Part Number (P/N)	QTY	Unit	Unit Price	Extended Price
1010	IT Optional Task - Identity Proofing: New Users Subscription P/N: IDME-IAL2I-0004S	Up to 460,000	EA	\$	\$
1011	IT Optional Task - Identity Proofing: Renewal Users Subscription P/N: IDME-IAL2R-0001S	Up to 2,090,000	EA	\$	\$
1012	MFA Event increase by 5 million P/N: IDME-AAL2-007	1	EA	\$	\$
1013	MFA Event increase by 10 million P/N: IDME-AAL2-008	1	EA	\$	\$
TOTAL OPTION PERIOD 1 OPTIONAL TASKS					\$
OPTION PERIOD 2 This 12-Month option period may be exercised in accordance with (IAW) FAR 52.217-9 Option to Extend the Term of the Contract (MAR 2000). Work shall not commence until, and unless, a formal modification is issued by the Contracting Officer. If exercised, this option period shall commence immediately upon the expiration of OPTION PERIOD 1. All products/services shall be IAW Section B.5 <i>PRODUCT DESCRIPTION</i> titled, "Enterprise ID.me Software Subscriptions and Support," dated March 10, 2026, PD Version Number: 2.0 *NSP – Not Separately Priced					
CLIN	Description / Part Number (P/N)	QTY	Unit	Unit Price	Extended Price
2001	Credential Broker License - Annual Active and Passive Broker Credential Broker Subscription P/N: IDME-CBL-0004	1	EA	\$	\$

2002	IT Identity Proofing: New Users Subscription IT Funded: The Subscriptions shall be governed by the application. Examples of applications are provided below. ITOPS/password Lighthouse (APIs) VA.gov P/N: IDME-IAL2I-0004S	Up to 560,000	EA	\$	\$
2003	Identity Proofing Renewal Users Subscription IT Funded: Renewal User licenses (LOA3 / IAL2), covering previously identity proofed users (at VA or any other agency) who do not have an active license and access VA services. P/N: IDME-IAL2R-0001S	Up to 4,840,000	EA	\$	\$
2004	<u>Deliverable</u>: Bi-weekly Snapshot Report. When VA exercises the Option period the report will be due bi-weekly. Electronic submission to: VA PM, COR, CO.	1	LT	*NSP	*NSP
2005	<u>Deliverable</u>: Monthly Subscription Usage Report When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
2006	<u>Deliverable</u>: Service Level Agreement (SLA) Monitoring Plan When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
2007	<u>Deliverable</u>: SLA Report When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
2008	<u>Deliverable</u>: User Support Report When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP

2009	<u>Deliverable</u> :MFA Monthly Status Report When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
TOTAL OPTION PERIOD 2					\$
OPTION PERIOD 2 OPTIONAL TASKS These optional tasks may be exercised in accordance with (IAW) FAR 52.217-7, Option for Increased Quantity-Separately Priced Line Item (MAR 1989), at the Government's discretion, at any time, multiple times, and from time to time, during OPTION PERIOD 2, up to the maximum quantity specified for CLINs 2010 and 2011. CLINs 2012 and 2013 may be exercised, at the Government's discretion, at any time, and only one time each, during OPTION PERIOD 2. All products/services shall be IAW Section B.5 <i>PRODUCT DESCRIPTION</i> titled, "Enterprise ID.me Software Subscriptions and Support," dated March 10, 2026, PD Version Number: 2.0					
CLIN	Description / Part Number (P/N)	QTY	Unit	Unit Price	Extended Price
2010	IT Optional Task - Identity Proofing: New Users Subscription P/N: IDME-IAL2I-0004S	Up to 460,000	EA	\$	\$
2011	IT Optional Task - Identity Proofing: Renewal Users Subscription P/N: IDME-IAL2R-0001S	Up to 2,090,000	EA	\$	\$
2012	MFA Event increase by 5 million P/N: IDME-AAL2-007	1	EA	\$	\$
2013	MFA Event increase by 10 million P/N: IDME-AAL2-008	1	EA	\$	\$
TOTAL OPTION PERIOD 2 OPTIONAL TASKS					\$
OPTION PERIOD 3 This 12-Month option period may be exercised in accordance with (IAW) FAR 52.217-9 Option to Extend the Term of the Contract (MAR 2000). Work shall not commence until, and unless, a formal modification is issued by the Contracting Officer. If exercised, this option period shall commence immediately upon the expiration of OPTION PERIOD 2. All products/services shall be IAW Section B.5 <i>PRODUCT DESCRIPTION</i> titled, "Enterprise ID.me Software Subscriptions and Support," dated March 10, 2026, PD Version Number: 2.0 *NSP – Not Separately Priced					
CLIN	Description / Part Number (P/N)	QTY	Unit	Unit Price	Extended Price
3001	Credential Broker License - Annual Active and Passive Broker Credential Broker Subscription P/N: IDME-CBL-0004	1	EA	\$	\$

3002	IT Identity Proofing: New Users Subscription IT Funded: The Subscriptions shall be governed by the application. Examples of applications are provided below. ITOPS/password Lighthouse (APIs) VA.gov P/N: IDME-IAL2I-0004S	Up to 540,000	EA	\$	\$
3003	Identity Proofing Renewal Users Subscription IT Funded: Renewal User licenses (LOA3 / IAL2), covering previously identity proofed users (at VA or any other agency) who do not have an active license and access VA services. P/N: IDME-IAL2R-0001S	Up to 5,120,000	EA	\$	\$
3004	<u>Deliverable</u>: Bi-weekly Snapshot Report. When VA exercises the Option period the report will be due bi-weekly. Electronic submission to: VA PM, COR, CO.	1	LT	*NSP	*NSP
3005	<u>Deliverable</u>: Monthly Subscription Usage Report When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
3006	<u>Deliverable</u>: Service Level Agreement (SLA) Monitoring Plan When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
3007	<u>Deliverable</u>: SLA Report When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
3008	<u>Deliverable</u>: User Support Report When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP

3009	<u>Deliverable</u> :MFA Monthly Status Report When VA exercises the Option period the report will be due monthly. Electronic submission to: VA PM, COR, CO	1	LT	*NSP	*NSP
TOTAL OPTION PERIOD 3					\$
OPTION PERIOD 3 OPTIONAL TASKS These optional tasks may be exercised in accordance with (IAW) FAR 52.217-7, Option for Increased Quantity-Separately Priced Line Item (MAR 1989), at the Government's discretion, at any time, multiple times, and from time to time, during OPTION PERIOD 3, up to the maximum quantity specified for CLINs 3010 and 3011. CLINs 3012 and 3013 may be exercised, at the Government's discretion, at any time, and only one time each, during OPTION PERIOD 3. All products/services shall be IAW Section B.5 <i>PRODUCT DESCRIPTION</i> titled, "Enterprise ID.me Software Subscriptions and Support," dated March 10, 2026, PD Version Number: 2.0					
CLIN	Description / Part Number (P/N)	QTY	Unit	Unit Price	Extended Price
3010	IT Optional Task - Identity Proofing: New Users Subscription P/N: IDME-IAL2I-0004S	Up to 460,000	EA	\$	\$
3011	IT Optional Task - Identity Proofing: Renewal Users Subscription P/N: IDME-IAL2R-0001S	Up to 2,090,000	EA	\$	\$
3012	MFA Event increase by 5 million P/N: IDME-AAL2-007	1	EA	\$	\$
3013	MFA Event increase by 10 million P/N: IDME-AAL2-008	1	EA	\$	\$
TOTAL OPTION PERIOD 3 OPTIONAL TASKS					\$
TOTAL ORDER VALUE (Total Base + Total All Option Periods + Total All Optional Tasks)					\$

B.5 PRODUCT DESCRIPTION



PRODUCT DESCRIPTION (PD)

DEPARTMENT OF VETERANS AFFAIRS

**Office of Information & Technology
Office of the Chief Technology Officer**

Enterprise ID.me Software Subscriptions and Support

Date: March 10, 2026
VA-26-00012041
PD Version Number: 2.0

DEFINITIONS

- a) **“User”** shall mean the end user of an application relying upon ID.me as a CSP. These applications may be those developed by VA or 3rd-party applications enabled via APIs developed by VA.
- B) **“NIST 800-63 Standards”** shall mean National Institute of Standards and Technology (NIST) 800-63-2 Level of Assurance (LOA) 1, 2, and 3 standards, NIST 800-63-3 Identity Assurance Level (IAL) 1, 2 and Authenticator Assurance Level (AAL) 1, 2, and 3 standards, and any subsequent NIST 800-63 publications or revisions which may be released during the period of performance.
- c) **“MFA Event”** shall mean any successful occurrence of a user being authenticated using any ID.me MFA option.
- d) **“Issue”** shall mean (i) a reproducible defect or combination of defects in ID.me services that results in a material loss of functionality or (ii) loss of availability to access the services functioning as agreed to and designed by VA and ID.me. Issues are classified as follows:
 - i. **“Severity 1 Issue”** is defined as the ID.me platform being unavailable to all users during Operating Hours,
 - ii. **“Severity 2 Issue”** is defined as one (1) or more material parts – but not the entirety – of the ID.me platform being unavailable to all users during Operating Hours, and
 - iii. **“Severity 3 Issue”** is defined as all other issues with the ID.me, such as general defects in the ID.me solution that have a reasonable temporary workaround or do not affect the user’s ability to utilize the ID.me (e.g. a cosmetic bug is found in the system).
- e) **“Sandbox Environment”** shall mean an ID.me provided environment that is used with the intent of development of, and integration with, VA systems and enabled applications with test users. There shall be no real user data or Personally Identifiable Information (PII) in this environment.
- f) **“Production Environment”** shall mean an ID.me provided environment that is integrated with existing production VA environments with the intent of providing CSP functionality for real users.
- g) **“Operating Hours”** shall mean 24 hours per day, 7 days per week for the production environment and 7am-9pm ET Monday-Friday excluding holidays for the sandbox environment.
- h) **“On-Call Hours”** shall mean support required outside of normal Operating Hours.
- i) **“Trusted Referee”** shall mean a trained ID.me employee that can verify a user’s identity through a remote video call.
- j) **“Relying Party”** shall mean offices within the Department of Veterans Affairs including, but not limited to, the Office of the CTO, Infrastructure Operations, and the Enterprise Service Desk.
- k) **“Identity Providers”** shall mean other credential service providers or identity brokers including, but not limited to, ID.me, Login.gov, and Okta.

1.0 PRODUCT REQUIREMENTS

The Department of Veterans Affairs (VA) Office of Information Technology, Office of the Chief Technology Officer (OCTO) has a requirement for renewal of the current ID.me Identity and Access Management (IAM) Credential Service Provider (CSP) Software-as-a-Service (SaaS) solution which includes an annual Credential Brokers license and new and renewal user identity proofing subscriptions. Specifically, VA requires renewal of the yearly Credential Broker license, which allows up to 125 million Multi-Factor Authentication (MFA) events in the Base Period and in each Option Period, as well as maintenance and help desk support.

The ID.me CSP SaaS solution allows Veterans to verify their identity, via the required identity proofing subscriptions, as well as authenticate them when they require access to secure VA systems like VA.gov and the VA Health and Benefits mobile app. The current ID.me IAM CSP SaaS solution is an integral part of VA's overall Digital Modernization Strategy. ID.me supports VA's compliance with Office of Management and Budget (OMB) Memo 19-17, which requires federal agencies to leverage existing credentials, use federal or commercial shared services, and use credentials that are in compliance with National Institute of Standards and Technology (NIST) 800-63. ID.me supports VA compliance with Executive Orders 14249, 14247, and 14271, which prioritize fraud reduction and usage of commercially available solutions.

Specifically, the ID.me Credential Broker License allows VA to utilize the ID.me's platform for authentication, including up to 125 million MFA events per year. An MFA event is when a Veteran uses the ID.me solution to access a secure VA application or website. The Broker License also provides Veterans publicly available customer support, including an inbound and outbound call center, video chat, live chat, and email channels as well as maintenance that includes software updates, patches, and fixes. Escalation support channels shall be available for VA employees, contractors, and designated representatives. Help desk inquiries associated with VA will be prioritized across general support, escalations, and fraud investigations. The required support shall ensure the ID.me CSP solution continually meets NIST 800-63-2 Level of Assurance (LOA) 1, 2, 3 and accredited at NIST800-63-3 Identity Assurance Level 1, 2 and Authenticator Assurance Level (AAL) (1, 2, and 3 throughout the period of performance and shall be compliant with a minimum of Web Content Accessibility Guidelines (WCAG) 2.1 Level A and Level AA accessibility standards.

The ID.me CSP SaaS solution shall include Trusted Referee support that provides a remote video chat option to assist users in verifying their identity, as well as an in-person proofing option with staff at specific locations (e.g. Veteran Services Organizations) who are able to verify Veterans, etc., when the online tool is not capable or where the Veteran prefers an in-person interaction.

The period of performance for this effort shall be a 12-month base period with three 12-month option periods, as well as Optional Tasks in the base and each option period to be exercised at the Government's discretion.

Some of the current VA use cases include the following:

VA.gov

VA.gov offers Veterans a single front door to VA benefits and services, in alignment with VA's digital modernization strategy. VA.gov currently serves millions of Veterans, offering a single place to access benefits, scheduling, status updates, and forms. The sign-in page supports sign-in functionality for a number of other web and mobile tools at VA.

VA API Platform (VAP)

VAP enabled 3rd-party application support to internal VA data and systems in 2019 using the ID.me CSP as part of its overall implementation of the OAuth 2.0 standard. This integration enables key applications such as Apple iPhone HealthKit, Humetrix, and MyLinks to access a Veteran's health history to access benefits claims submissions data and allows Veterans to verify their status for usajobs.gov Veterans' Preference processing of job applicants. VA requires maintenance, support, and expansion of the ID.me CSP solution that meets NIST 800-63-2 LOA 1, 2, 3 and accredited at NIST 800-63-3 IAL 1, 2 and AAL 1, 2, and 3. Such levels of identity proofing ensure secure and accurate access to PII, Protected Health Information (PHI), and sensitive data critical to Government identification of Veterans receiving and accessing VA benefits and services.

The ID.me CSP solution shall include a Credential Broker License and Identity Proofing User Subscriptions. Maintenance shall include software updates, patches, and fixes. User support for an unlimited number of sign-in, identity proofing, and MFA tickets shall be provided.

User Support channels shall include inbound phone support via direct routing from VA call centers, outbound phone support from ID.me, outbound video chat from ID.me, publicly available live chat, publicly available chatbot, publicly available inbound ticket submission, inbound escalation email and ticket submission from VA staff (va.support@id.me and customersupport@id.me) on behalf of Veterans, and outbound email from ID.me. Help desk tickets associated with VA will be moved to the top of the queue across general support, escalations, and fraud investigations. The time to connect with a user via phone support shall be measured during normal call center hours, which are 10:30AM-7:00PM Eastern Time.

All VA users shall be permitted to access the ID.me CSP solution, including users located outside of the continental United States. To ensure the accessibility of the ID.me CSP solution to all VA users, the solution shall be compliant with a minimum of WCAG 2.1 Level A and Level AA accessibility standards.

Data provided by VA or users to ID.me shall not be used for any purposes without the explicit consent of the user. A user shall receive an email confirmation if explicit consent is granted and be offered self-service options to opt-out for commercial purposes. All publicly accessible terms, policies, and agreements shall clearly delineate between the ID.me CSP solution and any other commercial offerings.

VA requires additional ID.me subscriptions and Identity Proof Subscriptions, throughout the Base Period and/or Option Periods, to support the users of applications being migrated to the ID.me solution, as well as renewal subscriptions for existing users to

support user authentications for VA Single Sign-On Enterprise (SSOe), VA.gov, and VAP.

The Contractor shall provide a Bi-weekly Snapshot Report including subscription issuances and renewals consumed by each integration. In addition, the Contractor shall provide a Monthly Subscription Usage Report that details the issuance of new users, renewal users, key attributes that pertain to tracking used, and unused subscriptions across each billing period to allow for forecasting and user management.

Deliverables

- A. Bi-weekly Snapshot Report (due 7 days ARO and due bi-weekly thereafter)
- B. Monthly Subscription Usage Report (due 30 days ARO and due monthly thereafter)

1.1 SERVICE LEVEL AGREEMENT

Each month, the Contractor shall ensure all services be available and functional to serve user requests at no less than 99.9% availability during Operating Hours for the production environment, and 99.0% availability during Operating Hours for the Sandbox environment.

In addition to availability, the Contractor shall provide a mechanism to determine performance anomalies using methodologies and metrics best suited to ID.me's service and support capabilities. Anomalies outside the definition of acceptable performance, as defined in the Service Level Agreement (SLA) Monitoring Plan, and as delivered by ID.me, shall be included in the unavailable time documented in the SLA.

Services that are faulted due to an external entity shall have trouble tickets logged with the responsible party, with all outage time attributable to the Contractor tracked until a ticket is logged with the responsible entity. An automated test, IAW the VA-approved SLA Monitoring Plan, with an execution frequency of no more than 300 seconds, and the logged reports of execution, including timing details, of that test shall be provided in the SLA Report. For any faulted services attributed to an external entity the Contractor shall include a record of the faulty services that was issued to the responsible party in the SLA report.

This record shall include the time that it was filed, and if resolved, the time of resolution. Any maintenance window outages associated with external entities shall include a record of the notification that was distributed to VA Stakeholders, and the time which the record was distributed.

The following list of exclusions applies to this SLA:

- Any interruptions attributable to VA software, hardware, or network connectivity
- Any disruption of third-party services reasonably necessary for ID.me service (e.g., AWS)
- Factors outside of ID.me's reasonable control (for example, natural disaster, war, acts of terrorism, riots, government action, or a network or device failure external to ID.me including at Customer's site or between Customer's site and ID.me's networks); and

- Any large-scale Internet outages, including, but not limited to, internet outages affecting large regions or numbers of users due to technical issues, cyber-attacks, natural disasters, or government action.

Deliverables:

- SLA Monitoring Plan (due monthly)
- SLA Report (due monthly)

1.2 ISSUE RESOLUTION

Should the Contractor be made aware of functional and performance Issues either by VA or through internal monitoring systems, the Contractor will respond to and resolve all identified Issues in accordance with the timeframes set forth below. The Contractor shall be responsible for determining the Severity Level of Issues with its components using the definitions provided above.

Table 1: Issue Resolution Requirements

Issue Severity	Operating Hours Initial Response Time	Operating Hours Resolution Time	On-Call Hours Initial Response Time	On-Call Hours Resolution Time
Severity 1 Issue	Within 30 minutes	Within 2 hours	Within 1 hour	Within 4 hours
Severity 2 Issue	Within 2 hours	Within 1 Business Day	Start of the next Business Day	Within 1 Business Day (by 5 p.m. of next Business Day)
Severity 3 Issue	Within 1 Business Day	Next available software release	By end of business the next Business Day	Next available software release or as otherwise agreed to by VA and the Contractor

1.3 USER SUPPORT AND ESCALATION

The Contractor shall ensure user support is available to end users via multiple channels during Operating Hours. Support shall be timely, dependent on channel:

- The Contractor's monthly average non-automated response time to users requesting support via email or web form shall be no more than 24 hours. Additionally, 90% of total tickets submitted should have a non-automated response within 24 hours of submission. Tracking of this metric should exclude autobot responses that result in issue resolution.
- The Contractor's monthly average time for an agent to attempt connection to a user requesting support via phone shall be no more than 4 hours; if wait times

exceed 30 minutes, automatic callback functionality shall be provided and optionally available to all users.

- c) The Contractor's monthly average time for connection to a support agent for users requesting support via live chat shall be no more than 2 hours. Additionally, 90% of all live chat requests shall be connected to a support agent within 2 hours. That time shall be measured from when the chatbot initiates transfer to a live chat agent and when that live chat agent engages the user.

If a Trusted Referee session is required for a user to complete remote identity proofing, and the user opts to join a Trusted Referee session, the user shall be connected to a Trusted Referee within a monthly average of not more than 1 hour.

The Contractor's monthly average time to complete investigations in cases where an account is actively suspended, such as a fraud investigation, shall be no more than 14 calendar days. Additionally, 90% of investigations will be completed within 14 calendar days. The timeline for investigation excludes time between a request for additional information from the user and user response. A fraud investigation will be considered 'complete' when it has a clear designation of status (e.g., fraudulent, not fraudulent), ID.me has made a final determination, ID.me has provided recommended next steps to VA if fraud is likely, and a timely path to resolution has been provided to the suspended user.

The Contractor shall make escalation support channels available to VA employees, Contractors, and designated representatives. Non-automated response to VA employees, Contractors, and designated representatives shall be received by the submitting individual within 12 hours for 95% of escalations in a given month. The average response time over the course of a given month will be 4 hours or less.

The Contractor shall provide a monthly User Support Report that includes details of support activities including, but not limited to, support response times, wait times, and volumes. Additionally, the User Support Report shall include information on volume of open investigations, volume of closed investigations, volumes of each outcome (e.g., how many reinstated vs. labeled fraud), breakdown of reasons for account suspensions, and statistics on time required to complete the investigation (e.g., day opened, day concluded).

Deliverables

- A. User Support Report (due monthly)

1.4 ASSESSMENT, AUTHORIZATION, AND CONTINUOUS MONITORING

The Contractor shall be required to ensure the on-going maintenance of the current FedRAMP authorization and VA's Authorization to Operate covering ID.me in accordance with all applicable VA policies.

1.5 SUBSCRIPTION MODEL

The Contractor shall include as part of its quote the initial ID.me shared services subscription model user tier for new issuances and renewals. The user tier established

at time of award and based on the quantity of purchases included in the initial order, shall establish the ceiling tier throughout the period of performance as initially proposed. Accordingly, for the remaining period of performance, the ceiling user price is locked in at the unit price corresponding to the ceiling tier established at the time of award. Throughout the period of performance, the Contractor shall notify VA of the current user tier in its monthly subscription usage report which will determine price per user charged for new issuances and renewals. Invoicing shall occur on a monthly basis based on the consumption of new issuances and renewals within the period covered by the invoice, in accordance with the current user tier's corresponding unit price.

Base Period

Item	Product Name and Description	Part Number	Quantity
1	Credential Broker License - Annual Active and Passive Broker Credential Broker Subscription License, Includes up to 125 million unique MFA events and up to 8 million unique MFA user assignments, integration access for additional agency Relying Parties and Identity Providers, and trust elevation/credential wrapping capabilities. Up to five (5) Call center auth pilots, 50,000 call center authentications.	IDME-CBL-0004	1
2	IT Identity Proofing: New Users Subscription IT Funded: The Subscriptions shall be governed by the application. Examples of applications are provided below. ITOPS/password Lighthouse (APIs) VA.gov	IDME-LOA3I-0004S	Up to 600,000
3	Identity Proofing Renewal Users Subscription IT Funded: Renewal User licenses (LOA3 / IAL2), covering previously identity proofed users (at VA or any other agency) who do not have an active license and access VA services.	IDME-LOA3R-0001S	Up to 4,250,000

Option Period 1

Item	Product Name and Description	Part Number	Quantity
1	Credential Broker License - Annual Active and Passive Broker Credential Broker Subscription License, Includes up to 125 million unique MFA events and up to 8 million unique MFA user assignments, integration access for additional agency Relying Parties and Identity Providers, and trust elevation/credential wrapping capabilities. Up to five (5) Call center auth pilots, 50,000 call center authentications.	IDME-CBL-0004	1

2	IT Identity Proofing: New Users Subscription IT Funding may be utilized for New User Subscriptions. The Subscriptions shall be governed by the application. Examples of applications are provided below. ITOPS/password Lighthouse (APIs) VA.gov	IDME-IAL2I-0004S	Up to 580,000
3	Identity Proofing Renewal Users Subscription IT Funded: Renewal User licenses (LOA3 / IAL2), covering previously identity proofed users (at VA or any other agency) who do not have an active license and access VA services.	IDME-IAL2R-0001S	Up to 4,550,000

Option Period 2

Item	Product Name and Description	Part Number	Quantity
1	Credential Broker License - Annual Active and Passive Broker Credential Broker Subscription License, Includes up to 125 million unique MFA events and up to 8 million unique MFA user assignments, integration access for additional agency Relying Parties and Identity Providers, and trust elevation/credential wrapping capabilities. Up to five (5) Call center auth pilots, 50,000 call center authentications.	IDME-CBL-0004	1
2	IT Identity Proofing: New Users Subscription: IT Funding may be utilized for New User Subscriptions. The Subscriptions shall be governed by the application. Examples of applications are provided below. ITOPS/password Lighthouse (APIs) VA.gov	IDME-IAL2I-0004S	Up to 560,000
3	Identity Proofing Renewal Users Subscription IT Funded: Renewal User licenses (LOA3 / IAL2), covering previously identity proofed users (at VA or any other agency) who do not have an active license and access VA services.	IDME-IAL2R-0001S	Up to 4,840,000

Option Period 3

Item	Product Name and Description	Part Number	Quantity
1	Credential Broker License - Annual Active and Passive Broker Credential Broker Subscription License, Includes up to 125 million unique MFA events and up to 8 million unique MFA user assignments, integration access for additional agency Relying Parties and Identity Providers, and trust elevation/credential wrapping capabilities. Up to five (5) Call center auth pilots, 50,000 call center authentications.	IDME-CBL-0004	1

2	IT Identity Proofing: New Users Subscription: IT Funding may be utilized for New User Subscriptions. The Subscriptions shall be governed by the application. Examples of applications are provided below. ITOPS/password Lighthouse (APIs) VA.gov	IDME-IAL2I-0004S	Up to 540,000
3	Identity Proofing Renewal Users Subscription IT Funded: Renewal User licenses (LOA3 / IAL2), covering previously identity proofed users (at VA or any other agency) who do not have an active license and access VA services.	IDME-IAL2R-0001S	Up to 5,120,000

Base Period Optional Tasks

Item	Product Name and Description	Part Number	Quantity
1	IT Optional Task - Identity Proofing: New Users Subscription	IDME-LOA3I-0004S	Up to 400,000
2	IT Optional Task - Identity Proofing: Renewal Users Subscription	IDME-LOA3R-0001S	Up to 2,000,000
3	IT Optional Task - Identity Proofing: New Users Subscription	IDME-IAL2I-0004S	Up to 60,000
4	IT Optional Task - Identity Proofing: Renewal Users Subscription	IDME-IAL2R-0001S	Up to 90,000
5	MFA Event increase by 5 million	IDME-AAL2-007	1
6	MFA Event increase by 10 million	IDME-AAL2-008	1

Option Period 1 Optional Tasks

Item	Product Name and Description	Part Number	Quantity
1	IT Optional Task - Identity Proofing: New Users Subscription	IDME-IAL2I-0004S	Up to 460,000
2	IT Optional Task - Identity Proofing: Renewal Users Subscription	IDME-IAL2R-0001S	Up to 2,090,000
3	MFA Event increase by 5 million	IDME-AAL2-007	1
4	MFA Event increase by 10 million	IDME-AAL2-008	1

Option Period 2 Optional Tasks

Item	Product Name and Description	Part Number	Quantity
1	IT Optional Task - Identity Proofing: New Users Subscription	IDME-IAL2I-0004S	Up to 460,000
2	IT Optional Task - Identity Proofing: Renewal Users Subscription	IDME-IAL2R-0001S	Up to 2,090,000
3	MFA Event increase by 5 million	IDME-AAL2-007	1

4	MFA Event increase by 10 million	IDME-AAL2-008	1
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Option Period 3 Optional Tasks

Item	Product Name and Description	Part Number	Quantity
1	IT Optional Task - Identity Proofing: New Users Subscription	IDME-IAL2I-0004S	Up to 460,000
2	IT Optional Task - Identity Proofing: Renewal Users Subscription	IDME-IAL2R-0001S	Up to 2,090,000
3	MFA Event increase by 5 million	IDME-AAL2-007	1
4	MFA Event increase by 10 million	IDME-AAL2-008	1

1.5.1 ITEM #1: ID.me CREDENTIAL BROKER LICENSE (IDME-CBL-0004)

The Contractor shall provide up to 125 million MFA Events for any VA accepted login option (ID.me). MFA Events shall be included as a pool across all of VA's users without any limitation on per user MFA Events. Additionally, the Contractor shall prepare an MFA Monthly Status Report, which will include itemizing the usages per credential. Specifically, the Monthly Status Report shall also include a report on the current usage of already provided MFA events for the already procured LOA3/IAL2 credential at the new issuance rates as well as the lower renewal rate for each activity under the base period of performance, as well as the Option Periods and any Optional Tasks exercised.

The following capabilities shall be made available for MFA Events:

- SMS One-Time-Passcode or Short-link
- Voice One-Time Passcode
- Native App Push Notifications
- Native App Time-Based-One-Time-Passcode Code Generators
- External Authenticator App Support e.g. Google Authenticator, Duo, etc.
- Recovery Codes
- FIDO2 Web Authentication (WebAuthn) (please note FIDO2 WebAuthn is backward compatible with FIDO U2F authenticators)
- Near-Field Communication (NFC)-enabled security key

The Contractor shall provide these MFA capabilities to the eight (8) million user accounts enrolled with ID.me OR linked to ID.me via a third-party login provider.

Intelligent Credential Broker Service

The Contractor shall provide the following:

- Enables custom identity proofing and/or 2FA/MFA enrollment depending on the state of the end user's credential e.g. an LOA1 account needs proofing + MFA Attribute Exchange: validates attributes that are true about a legal identity e.g. is this identity also a healthcare provider, a student, a teacher, etc.
- Audit Capabilities
- Permissioned storage and release of personal data

- Credential Service Provider Attribute Bundle Support for Kantara approved attribute profiles.
- Continuity of Operations/Disaster Recovery within the United States end user support for all login, identity proofing, and MFA help desk tickets. Technical support for all aspects of the Credential Broker Subscription License and credential issuance
- Security and Protocol requirements included:
 - Certified by the Kantara Initiative
 - Supports NIST 800-63-2 LOAs 1, 2, and 3
 - Supports NIST 800-63-3 IAL/AAL 1 and 2
 - Capable of operating as a Credential Service and as Token Manager (TM)
- Token Manager is ID.me adding MFA to other VA accepted logins
 - Support for SAML 2.0, OAuth 2.0, and OpenID Connect
 - FIPS 140-2 compliant

Call center authentication

The Contractor shall provide the following:

- As a means to support streamline and secure authentication outside of web-based only use cases; ID.me is developing the capability to leverage a NIST credential in telephonic pathways.
- This credential broker license shall include up to five (5) pilots for VA call centers with up to 50,000 call center authentications total.

The Contractor shall provide all necessary configuration changes to support the Credential Broker License.

Deliverable:

- A. MFA Monthly Status Report

1.5.2 ITEM #2: IDENTITY PROOFING: NEW USER SUBSCRIPTIONS (IDME-LOA3I-0004S and IDME-IAL2I-0004S)

ID.me offers NIST 800-63 compliant identity proofing via three different pathways:

- **Online Self-Serve Identity Proofing:** empowers users to prove their identity online through a self-serve flow.
- **Virtual In-Person Identity Proofing:** enables users to prove their identity remotely through a video chat experience.
- **In-Person Identity Verification:** The Contractor offers kiosks at available retail store locations nationwide as options for identity verification.

ID.me shall only charge VA for successfully identity proofed individuals in the Production Environment. After identity proofing, an individual may use ID.me's MFA capabilities to login for an unlimited number of times under the terms of the credential provider service. For prepaid subscriptions, VA will have 12 months to activate the subscription before the subscription expires.

Upon VA transition to IAL2, all remaining IDME-LOA3I-0004S licenses convert to IDME-IAL2I-0004S licenses at the same unit price.

1.5.3 ITEM # 3: INCREASE TO MFA EVENTS (OPTIONAL TASKS)

These optional tasks may be exercised during the base and each option period to increase the existing 125 million MFA limit per year included with the Credential Brokers License. If exercised, the Contractor shall provide brand name ID.me MFA events to support all LOA3/IAL2 credentials in accordance with this product description, with one optional task adding an additional 5 million MFA events, and a separate optional task for an additional 10 million MFA events.

2.0 NOTICE OF THE FEDERAL ACCESSIBILITY LAW AFFECTING ALL INFORMATION AND COMMUNICATION TECHNOLOGY (ICT) PROCUREMENTS (SECTION 508)

On January 18, 2017, the Architectural and Transportation Barriers Compliance Board (Access Board) revised and updated, in a single rulemaking, standards for electronic and information technology developed, procured, maintained, or used by Federal agencies covered by Section 508 of the Rehabilitation Act of 1973, as well as our guidelines for telecommunications equipment and customer premises equipment covered by Section 255 of the Communications Act of 1934. The revisions and updates to the Section 508-based standards and Section 255-based guidelines are intended to ensure that information and communication technology (ICT) covered by the respective statutes is accessible to and usable by individuals with disabilities.

2.1 SECTION 508 – INFORMATION AND COMMUNICATION TECHNOLOGY (ICT) STANDARDS

The Section 508 standards established by the Access Board are incorporated into, and made part of all VA orders, solicitations and purchase orders developed to procure ICT. These standards are found in their entirety at: <https://www.access-board.gov/guidelines-and-standards/communications-and-it/about-the-ict-refresh/final-rule/text-of-the-standards-and-guidelines>. A printed copy of the standards will be supplied upon request.

Federal agencies must comply with the updated Section 508 Standards beginning on January 18, 2018. The Final Rule as published in the Federal Register is available from the Access Board: <https://www.access-board.gov/guidelines-and-standards/communications-and-it/about-the-ict-refresh/final-rule>.

The Contractor shall comply with “508 Chapter 2: Scoping Requirements” for all electronic ICT and content delivered under this contract. Specifically, as appropriate for the technology and its functionality, the Contractor shall comply with the technical standards marked here:

- ☒ E205 Electronic Content – (Accessibility Standard -WCAG 2.0 Level A and AA Guidelines)
- ☒ E204 Functional Performance Criteria
- ☐ E206 Hardware Requirements

- ☒ E207 Software Requirements
- ☒ E208 Support Documentation and Services Requirements

2.2 COMPATIBILITY WITH ASSISTIVE TECHNOLOGY

The standards do not require installation of specific accessibility-related software or attachment of an assistive technology device. Section 508 requires that ICT be compatible with such software and devices so that ICT can be accessible to and usable by individuals using assistive technology, including but not limited to screen readers, screen magnifiers, and speech recognition software.

2.3 ACCEPTANCE AND ACCEPTANCE TESTING

Deliverables resulting from this solicitation will be accepted based in part on satisfaction of the Section 508 Chapter 2: Scoping Requirements standards identified above.

The Government reserves the right to test for Section 508 Compliance before delivery. The Contractor shall be able to demonstrate Section 508 Compliance upon delivery.

3.0 GENERAL REQUIREMENTS

3.1 VA TECHNICAL REFERENCE MODEL

The Contractor shall support the VA enterprise management framework. In association with the framework, the Contractor shall comply with OIT Technical Reference Model (VA TRM). The VA TRM is one component within the overall Enterprise Architecture (EA) that establishes a common vocabulary and structure for describing the information technology used to develop, operate, and maintain enterprise applications. Moreover, the VA TRM, which includes the Standards Profile and Product List, serves as a technology roadmap and tool for supporting OIT. Architecture & Engineering Services (AES) has overall responsibility for the VA TRM.

3.2 ZERO TRUST – VA CRITICAL SECURITY CONTROLS

VA has established minimum mandatory security requirements and requires that any network connected software system or service must meet the VA Critical Security Controls as outlined in the VA Memorandum, “VA Security Controls”, <https://www.voa.va.gov/DocumentView.aspx?DocumentID=5010>. VA Critical Security Controls identify the minimum mandatory requirements that must be implemented across all VA enterprise infrastructure, cloud computing environments, information systems, networks, and specialized devices (medical devices/systems, special-purpose systems, and research scientific computing devices) that process, store, and/or transmit VA data. Effective July 1, 2025, the Contractor shall implement these VA Critical Security Controls, within any network connected software system or service prior to being authorized for use in the VA. This functional requirement is not negotiable, and Plan of Action & Milestones (POAM) will not be accepted in the event these controls cannot be implemented for new systems. Critical Security Controls are intended to increase VA’s security posture and provide security and privacy risk visibility into the VA network and is not a new requirement. The Contractor’s failure to maintain these VA

Critical Controls after implementation will result in VA discontinuing the use of the system.

3.3 SOCIAL SECURITY NUMBER (SSN) REDUCTION

The Contractor solution shall support the Social Security Number (SSN) Fraud Prevention Act (FPA) of 2017 which prohibits the inclusion of SSNs on any document sent by mail. The Contractor support shall also be performed in accordance with Section 240 of the Consolidated Appropriations Act (CAA) 2018, enacted March 23, 2018, which mandates VA to discontinue using SSNs to identify individuals in all VA information systems as the Primary Identifier. The Contractor shall ensure that any new IT solution discontinues the use of SSN as the Primary Identifier to replace the SSN with the Integrated Control Number (ICN) in all VA information systems for all individuals. The Contractor shall ensure that all Contractor delivered applications and systems integrate with the VA Master Person Index (MPI) for identity traits to include the use of the ICN as the Primary Identifier. The Contractor solution may only use a Social Security Number to identify an individual in an information system if and only if the use of such number is required to obtain information VA requires from an information system that is not under the jurisdiction of VA.

3.4 INTERNET PROTOCOL VERSION 6 (IPv6)

The Contractor solution shall support IPv6-Only based upon the memo issued by the OMB on November 19, 2020 (<https://www.whitehouse.gov/wp-content/uploads/2020/11/M-21-07.pdf>). Which defines IPv6-only as the state of an operational system or service when IPv4 protocol functions (addressing, packet forwarding) are not in use. The NIST USGv6 profile defines technical requirements for a product to be capable of operating in IPv6-Only environments. IPv6-Only technology, in accordance with the USGv6 Program (<https://www.nist.gov/programs-projects/usgv6-program/usgv6-revision-1>), NIST Special Publication (SP) 500-267B Revision 1 “USGv6 Profile” (<https://doi.org/10.6028/NIST.SP.500-267Br1>), and NIST SP 800-119 “Guidelines for the Secure Deployment of IPv6” (<https://doi.org/10.6028/NIST.SP.800-119>), compliance shall be included in all IT infrastructures, application designs, application development, operational systems and sub-systems, and their integration. In addition to the above requirements, all devices, applications, and systems shall support all applicable functionality on native IPv6-Only as well as dual stack (IPv6 / IPv4) connectivity without additional memory or other resources being provided by the Government, so that they can function in a mixed environment. All public/external facing servers and services (e.g., web, email, DNS, ISP services, etc.) shall support native IPv6-Only and dual stack (IPv6 / IPv4) users and all internal infrastructure and applications shall support using native IPv6-Only and dual stack (IPv6 / IPv4) for all functionality and operations.

3.5 SOFTWARE AND LICENSING REQUIREMENTS

The Contractor shall be responsible for the provision of all software licenses and any associated licensing maintenance required for any development, delivery, integration, operation, and/or maintenance associated with its proposed application(s), software products, software solution, and/or system including, but not limited to, any and all application(s), software and/or software products that comprise, are a part of, or

integrate with the Contractor's proposed application(s), software products, software solution, and/or system for the life of any resulting contract.

3.6 TRUSTED INTERNET CONNECTION (TIC)

The Contractor solution shall meet the requirements outlined in Office of Management and Budget Memorandum M-19-26, "Update to the Trusted Internet Connections (TIC) Initiative" (<https://www.whitehouse.gov/wp-content/uploads/2019/09/M-19-26.pdf>), VA

Directive 6513 "Secure External Connections" and shall comply with the TIC 3.0 Core Guidance Documents, including all Volumes and TIC Use Cases, found at the Cybersecurity & Infrastructure Security Agency (CISA) (<https://www.cisa.gov/publication/tic-30-core-guidance-documents>.)

4.0 POINTS OF CONTACT

VA Product Owner:

Name: Provided at time of award

Address: Provided at time of award

Email: Provided at time of award

Contracting Officer's Representative:

Name: Provided at time of award

Address: Provided at time of award

Email: Provided at time of award

Contracting Officer:

Name: Provided at time of award

Address: Provided at time of award

Email: Provided at time of award

Contract Specialist:

Name: William Waterhouse

Address: 23 Christopher Way, Eatontown, NJ 07724

Email: William.waterhouse@va.gov

**ADDENDUM B – VA INFORMATION AND INFORMATION SYSTEM
SECURITY/PRIVACY LANGUAGE**

**APPLICABLE SECTIONS FROM: VA NOTICE 24-12, APRIL 22, 2024, UPDATE TO
VA HANDBOOK 6500.6, CONTRACT SECURITY, APPENDIX C VA INFORMATION
AND INFORMATION SYSTEM SECURITY/PRIVACY LANGUAGE, FOR INCLUSION
INTO CONTRACTS, AS APPROPRIATE**

B1. GENERAL

This entire section applies to all acquisitions requiring any Information Security and Privacy language. Contractors, contractor personnel, Subcontractors and subcontractor personnel will be subject to the same federal laws, regulations, standards, VA directives and handbooks, as VA personnel regarding information and information system security and privacy.

B2. VA INFORMATION CUSTODIAL LANGUAGE

- a. The Government shall receive unlimited rights to data/intellectual property first produced and delivered in the performance of this contract or order (hereinafter “contract”) unless expressly stated otherwise in this contract. This includes all rights to source code and all documentation created in support thereof. The primary clause used to define Government and Contractor data rights is FAR 52.227-14 Rights in Data – General.
- b. Information made available to the Contractor by VA for the performance or administration of this contract will be used only for the purposes specified in the service agreement, SOW, PWS, PD, and/or contract. The Contractor shall not use VA information in any other manner without prior written approval from a VA Contracting Officer (CO). The primary clause used to define Government and Contractor data rights is FAR 52.227-14 Rights in Data – General.
- c. VA information will not be co-mingled with any other data on the Contractor’s information systems or media storage systems. The Contractor shall ensure compliance with Federal and VA requirements related to data protection, data encryption, physical data segregation, logical data segregation, classification requirements and media sanitization.
- d. VA reserves the right to conduct scheduled or unscheduled audits, assessments, or investigations of Contractor Information Technology (IT) resources to ensure information security is compliant with Federal and VA requirements. The Contractor shall provide all necessary access to records (including electronic and documentary materials related to the contracts and subcontracts) and support (including access to Contractor and Subcontractor staff associated with the contract) to VA, VA's Office Inspector General (OIG), and/or Government Accountability Office (GAO) staff during periodic control assessments, audits, or investigations.
- e. The Contractor may only use VA information within the terms of the contract and applicable Federal law, regulations, and VA policies. If new Federal information

security laws, regulations or VA policies become applicable after execution of the contract, the parties agree to negotiate contract modification and adjustment necessary to implement the new laws, regulations, and/or policies.

- f. The Contractor shall not make copies of VA information except as specifically authorized and necessary to perform the terms of the contract. If copies are made for restoration purposes, after the restoration is complete, the copies shall be destroyed in accordance with VA Directive 6500, VA Cybersecurity Program and VA Information Security Knowledge Service.
- g. If a Veterans Health Administration (VHA) contract is terminated for default or cause with a business associate, the related local Business Associate Agreement (BAA) shall also be terminated and actions taken in accordance with VHA Directive 1605.05, Business Associate Agreements. If there is an executed national BAA associated with the contract, VA will determine what actions are appropriate and notify the contractor.
- h. The Contractor shall store and transmit VA sensitive information in an encrypted form, using VA-approved encryption tools which are, at a minimum, Federal Information Processing Standards (FIPS) 140-2, Security Requirements for Cryptographic Modules (or its successor) validated and in conformance with VA Information Security Knowledge Service requirements. The Contractor shall transmit VA sensitive information using VA approved Transport Layer Security (TLS) configured with FIPS based cipher suites in conformance with NIST 800-52, Guidelines for the Selection, Configuration and Use of Transport Layer Security (TLS) Implementations.
- i. The Contractor's firewall and web services security controls, as applicable, shall meet or exceed VA's minimum requirements.
- j. Except for uses and disclosures of VA information authorized by this contract for performance of the contract, the Contractor may use and disclose VA information only in two situations: (i) in response to a qualifying order of a court of competent jurisdiction after notification to VA CO (ii) with written approval from the VA CO. The Contractor shall refer all requests for, demands for production of or inquiries about, VA information and information systems to the VA CO for response.
- k. Notwithstanding the provision above, the Contractor shall not release VA records protected by Title 38 U.S.C. § 5705, Confidentiality of medical quality-assurance records and/or Title 38 U.S.C. § 7332, Confidentiality of certain medical records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse or infection with Human Immunodeficiency Virus (HIV). If the Contractor is in receipt of a court order or other requests for the above-mentioned information, the Contractor shall immediately refer such court order or other requests to the VA CO for response.
- l. Information made available to the Contractor by VA for the performance or administration of this contract or information developed by the Contractor in performance or administration of the contract will be protected and secured in

accordance with VA Directive 6500 and Identity and Access Management (IAM) Security processes specified in the VA Information Security Knowledge Service.

- m. Any data destruction done on behalf of VA by a Contractor shall be done in accordance with National Archives and Records Administration requirements as outlined in VA Directive 6300, Records and Information Management, VA Handbook 6300.1, Records Management Procedures, and applicable VA Records Control Schedules.
- n. The Contractor shall provide its plan for destruction of all VA data in its possession according to VA Directive 6500 and NIST 800-88, Guidelines for Media Sanitization prior to termination or completion of this contract. If directed by the COR/CO, the Contractor shall return all Federal Records to VA for disposition.
- o. Any media, such as paper, magnetic tape, magnetic disks, solid state devices or optical discs that is used to store, process, or access VA information that cannot be destroyed shall be returned to VA. The Contractor shall hold the appropriate material until otherwise directed by the Contracting Officer's Representative (COR) or CO. Items shall be returned securely via VA-approved methods. VA sensitive information must be transmitted utilizing VA-approved encryption tools which are validated under FIPS 140-2 (or its successor) and NIST 800-52. If mailed, the Contractor shall send via a trackable method (USPS, UPS, FedEx, etc.) and immediately provide the COR/CO with the tracking information. Self-certification by the Contractor that the data destruction requirements above have been met shall be sent to the COR/CO within 30 business days of termination of the contract.
- p. All electronic storage media (hard drives, optical disks, CDs, back-up tapes, etc.) used to store, process or access VA information will not be returned to the Contractor at the end of lease, loan, or trade-in. Exceptions to this paragraph will only be granted with the written approval of the VA CO.

B3. ACCESS TO VA INFORMATION AND VA INFORMATION SYSTEMS

- a. A Contractor/Subcontractor shall request logical (technical) or physical access to VA information and VA information systems for their employees and subcontractors only to the extent necessary to perform the services specified in the solicitation or contract. This includes indirect entities, both affiliate of Contractor/Subcontractor and agent of Contractor/Subcontractor.
- b. Contractors and subcontractors shall sign the VA Information Security Rule of Behavior (ROB) before access is provided to VA information and information systems (see Section 4, Training, below). The ROB contains the minimum user compliance requirements and does not supersede any policies of VA facilities or other agency components which provide higher levels of protection to VA's information or information systems. Users who require privileged access shall complete the VA elevated privilege access request processes before privileged access is granted.

- c. All Contractors and Subcontractors working with VA information are subject to the same security investigative and clearance requirements as those of VA appointees or employees who have access to the same types of information. The level and process of background security investigations for contractors shall be in accordance with VA Directive and Handbook 0710, Personnel Suitability and Security Program. The Office of Human Resources and Administration/Operations, Security and Preparedness (HRA/OSP) is responsible for these policies and procedures. Contract personnel who require access to classified information or information systems shall have an appropriate security clearance. Verification of a Security Clearance shall be processed through the Special Security Officer located in HRA/OSP. Contractors shall conform to all requirements stated in the National Industrial Security Program Operating Manual (NISPOM).
- d. All Contractors and subcontractors shall comply with conditions specified in VAAR 852.204-71(d); Contractor operations required to be in United States. All Contractors and Subcontractors working with VA information must be permanently located within a jurisdiction subject to the law of the United States or its Territories to the maximum extent feasible. If services are proposed to be performed abroad the Contractor must state where all non-U.S. services are provided. The Contractor shall deliver to VA a detailed plan specifically addressing communications, personnel control, data protection and potential legal issues. The plan shall be approved by the COR/CO in writing prior to access being granted.
- e. The Contractor shall notify the COR/CO in writing immediately (no later than 24 hours) after personnel separation or occurrence of other causes. Causes may include the following:
 - (1) Contractor/Subcontractor personnel no longer has a need for access to VA information or VA information systems.
 - (2) Contractor/Subcontractor personnel are terminated, suspended, or otherwise has their work on a VA project discontinued for any reason.
 - (3) Contractor believes their own personnel or Subcontractor personnel may pose a threat to their company's working environment or to any company-owned property. This includes Contractor-owned assets, buildings, confidential data, customers, employees, networks, systems, trade secrets and/or VA data.
 - (4) Any previously undisclosed changes to Contractor/Subcontractor background history are brought to light, including but not limited to changes to background investigation or employee record.
 - (5) Contractor/Subcontractor personnel have their authorization to work in the United States revoked.

- (6) Agreement by which Contractor provides products and services to VA has either been fulfilled or terminated, such that VA can cut off electronic and/or physical access for Contractor personnel.
- f. In such cases of contract fulfillment, termination, or other causes; the Contractor shall take the necessary measures to immediately revoke access to VA network, property, information, and information systems (logical and physical) by Contractor/Subcontractor personnel. These measures include (but are not limited to): removing and then securing Personal Identity Verification (PIV) badges and PIV – Interoperable (PIV-I) access badges, VA-issued photo badges, credentials for VA facilities and devices, VA-issued laptops, and authentication tokens. Contractors shall notify the appropriate VA COR/CO immediately to initiate access removal.
- g. Contractors/Subcontractors who no longer require VA accesses will return VA-issued property to VA. This property includes (but is not limited to): documents, electronic equipment, keys, and parking passes. PIV and PIV-I access badges shall be returned to the nearest VA PIV Badge Issuance Office. Once they have had access to VA information, information systems, networks and VA property in their possessions removed, Contractors shall notify the appropriate VA COR/CO.

B4. TRAINING

- a. All contractors and subcontractors requiring access to VA information and VA information systems shall successfully complete the following before being granted access to VA information and its systems:
 - (1) VA Privacy and Information Security Awareness and Rules of Behavior course (Talent Management System (TMS) #10176) initially and annually thereafter.
 - (2) Sign and acknowledge (electronically through TMS #10176) understanding of and responsibilities for compliance with the Organizational Rules of Behavior, relating to access to VA information and information systems initially and annually thereafter; and
 - (3) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system or information access [to be defined by the VA program official and provided to the VA CO for inclusion in the solicitation document – i.e., any role-based information security training].
- b. The Contractor shall provide to the COR/CO a copy of the training certificates and certification of signing the Organizational Rules of Behavior for each applicable employee within five days of the initiation of the contract and annually thereafter, as required.
- c. Failure to complete the mandatory annual training is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the required training is complete.

B5. SECURITY INCIDENT INVESTIGATION

- a. The Contractor, Subcontractor, their employees, or business associates shall immediately (within one hour) report suspected security / privacy incidents to the VA OIT's Enterprise Service Desk (ESD) by calling (855) 673-4357 (TTY: 711). The ESD is OIT's 24/7/365 single point of contact for IT-related issues. After reporting to the ESD, the Contractor, Subcontractor, their employees, or business associates shall, within one hour, provide the COR/CO the incident number received from the ESD.
- b. To the extent known by the Contractor/Subcontractor, the Contractor/Subcontractor's notice to VA shall identify the information involved and the circumstances surrounding the incident, including the following:
 - (1) The date and time (or approximation of) the Security Incident occurred.
 - (2) The names of individuals involved (when applicable).
 - (3) The physical and logical (if applicable) location of the incident.
 - (4) Why the Security Incident took place (i.e., catalyst for the failure).
 - (5) The amount of data belonging to VA believed to have been compromised.
 - (6) The remediation measures the Contractor is taking to ensure no future incidents of a similar nature.
- c. After the Contractor has provided the initial detailed incident summary to VA, they will continue to provide written updates on any new and relevant circumstances or facts they discover. The Contractor, Subcontractor, and their employees shall fully cooperate with VA or third-party entity performing an independent risk analysis on behalf of VA. Failure to cooperate may be deemed a material breach and grounds for contract termination.
- d. VA IT Contractors shall follow VA Handbook 6500, Risk Management Framework for VA Information Systems VA Information Security Program, and VA Information Security Knowledge Service guidance for implementing an Incident Response Plan or integrating with an existing VA implementation.
- e. In instances of theft or break-in or other criminal activity, the Contractor/Subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG, and the VA Office of Security and Law Enforcement. The Contractor, its employees, and its Subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The Contractor/Subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

- f. The Contractor shall comply with VA Handbook 6500.2, Management of Breaches Involving Sensitive Personal Information, which establishes the breach management policies and assigns responsibilities for the oversight, management and reporting procedures associated with managing of breaches.
- g. With respect to unsecured Protected Health Information (PHI), the Contractor is deemed to have discovered a data breach when the Contractor knew or should have known of breach of such information. When a business associate is part of VHA contract, notification to the covered entity (VHA) shall be made in accordance with the executed BAA.
- h. If the Contractor or any of its agents fails to protect VA sensitive personal information or otherwise engages in conduct which results in a data breach involving any VA sensitive personal information the Contractor/Subcontractor processes or maintains under the contract; the Contractor shall pay liquidated damages to the VA as set forth in clause 852.211-76, Liquidated Damages—Reimbursement for Data Breach Costs.

B6. INFORMATION SYSTEM DESIGN AND DEVELOPMENT

- a. Information systems designed or developed on behalf of VA at non-VA facilities shall comply with all applicable Federal law, regulations, and VA policies. This includes standards for the protection of electronic Protected Health Information (PHI), outlined in 45 C.F.R. Part 164, Subpart C and information and system security categorization level designations in accordance with FIPS 199, Standards for Security Categorization of Federal Information and Information Systems and FIPS 200, Minimum Security Requirements for Federal Information Systems. Baseline security controls shall be implemented commensurate with the FIPS 199 system security categorization (reference VA Handbook 6500 and VA Trusted Internet Connections (TIC) Architecture).
- b. Contracted new developments require creation, testing, evaluation, and authorization in compliance with VA Assessment and Authorization (A&A) processes in VA Handbook 6500 and VA Information Security Knowledge Service to obtain an Authority to Operate (ATO). VA Directive 6517, Risk Management Framework for Cloud Computing Services, provides the security and privacy requirements for cloud environments.
- c. VA IT Contractors, Subcontractors and third-party service providers shall address and/or integrate applicable VA Handbook 6500, VA Handbook 6517, Risk Management Framework for Cloud Computing Services and Information Security Knowledge Service specifications in delivered IT systems/solutions, products and/or services. If systems/solutions, products and/or services do not directly match VA security requirements, the Contractor shall work through the COR/CO to identify the VA organization responsible for governance or resolution. Contractors shall comply with FAR 39.1, specifically the prohibitions referenced.
- d. The Contractor (including producers and resellers) shall comply with OMB M-22-18 and M-23-16 when using third-party software on VA information systems or otherwise affecting the VA information. This includes new software purchases and software renewals for software developed or modified by major version

change after the issuance date of M-22-18 (September 14, 2022). The term “software” includes firmware, operating systems, applications and application services (e.g., cloud-based software), as well as products containing software. The Contractor shall provide a self-attestation that secure software development practices are utilized as outlined by Executive Order (EO)14028 and NIST Guidance. A third-party assessment provided by either a certified Federal Risk and Authorization Management Program (FedRAMP) Third Party Assessor Organization (3PAO) or one approved by the agency will be acceptable in lieu of a software producer's self-attestation.

- e. The Contractor shall ensure all delivered applications, systems and information systems are compliant with Homeland Security Presidential Directive (HSPD) 12 and VA Identity and Access management (IAM) enterprise identity management requirements as set forth in OMB M-19-17, M-05-24, FIPS 201-3, Personal Identity Verification (PIV) of Federal Employees and Contractors (or its successor), M-21-31 and supporting NIST guidance. This applies to Commercial Off-The-Shelf (COTS) product(s) that the Contractor did not develop, all software configurations and all customizations.
- f. The Contractor shall ensure all Contractor delivered applications and systems provide user authentication services compliant with VA Handbook 6500, VA Information Security Knowledge Service, IAM enterprise requirements and NIST 800-63, Digital Identity Guidelines, for direct, assertion-based authentication and/or trust-based authentication, as determined by the design and integration patterns. Direct authentication at a minimum must include Public Key Infrastructure (PKI) based authentication supportive of PIV and/or Common Access Card (CAC), as determined by the business need and compliance with VA Information Security Knowledge Service specifications.
- g. The Contractor shall use VA authorized technical security baseline configurations and certify to the COR that applications are fully functional and operate correctly as intended on systems in compliance with VA baselines prior to acceptance or connection into an authorized VA computing environment. If the Defense Information Systems Agency (DISA) has created a Security Technical Implementation Guide (STIG) for the technology, the Contractor may configure to comply with that STIG. If VA determines a new or updated VA configuration baseline needs to be created, the Contractor shall provide required technical support to develop the configuration settings. FAR 39.1 requires the population of operating systems and applications includes all listed on the NIST National Checklist Program Checklist Repository,
- h. The standard installation, operation, maintenance, updating and patching of software shall not alter the configuration settings from VA approved baseline configuration. Software developed for VA must be compatible with VA enterprise installer services and install to the default “program files” directory with silently install and uninstall. The Contractor shall perform testing of all updates and patching prior to implementation on VA systems.
- i. Applications designed for normal end users will run in the standard user context without elevated system administration privileges.

- j. The Contractor-delivered solutions shall reside on VA approved operating systems. Exceptions to this will only be granted with the written approval of the COR/CO.
- k. The Contractor shall design, develop, and implement security and privacy controls in accordance with the provisions of VA security system development life cycle outlined in NIST 800-37, Risk Management Framework for Information Systems and Organizations: A System Life Cycle Approach for Security and Privacy, VA Directive and Handbook 6500, and VA Handbook 6517.
- l. The Contractor shall comply with the Privacy Act of 1974 (the Act), FAR 52.224-2 Privacy Act, and VA rules and regulations issued under the Act in the design, development, or operation of any system of records on individuals to accomplish a VA function.
- m. The Contractor shall ensure the security of all procured or developed information systems, systems, major applications, minor applications, enclaves and platform information technologies, including their subcomponents (hereinafter referred to as "Information Systems") throughout the life of this contract and any extension, warranty, or maintenance periods. This includes security configurations, workarounds, patches, hotfixes, upgrades, replacements and any physical components which may be necessary to remediate all security vulnerabilities published or known to the Contractor anywhere in the information systems (including systems, operating systems, products, hardware, software, applications and firmware). The Contractor shall ensure security fixes do not negatively impact the Information Systems.
- n. When the Contractor is responsible for operations or maintenance of the systems, the Contractor shall apply the security fixes within the timeframe specified by the associated controls on the VA Information Security Knowledge Service. When security fixes involve installing third party patches (such as Microsoft OS patches or Adobe Acrobat), the Contractor shall provide written notice to the VA COR/CO that the patch has been validated as not affecting the Systems within 10 business days.

B7. INFORMATION SYSTEM HOSTING, OPERATION, MAINTENANCE OR USE

- a. The Contractor shall comply with all Federal laws, regulations, and VA policies for Information systems (cloud and non-cloud) that are hosted, operated, maintained, or used on behalf of VA at non-VA facilities. Security controls for collecting, processing, transmitting, and storing of VA sensitive information, must be in place. The controls will be tested by VA or a VA sanctioned 3PAO and approved by VA prior to hosting, operation, maintenance or use of the information system or systems by or on behalf of VA. This includes conducting compliance risk assessments, security architecture analysis, routine vulnerability scanning, system patching, change management procedures and the completion of an acceptable contingency plan for each system. The Contractor's security control procedures shall be the same as procedures used to secure VA-operated information systems.

- b. Outsourcing (Contractor facility, equipment, or staff) of systems or network operations, telecommunications services or other managed services require Assessment and Authorization (A&A) of the Contractor's systems in accordance with VA Handbook 6500 as specified in VA Information Security Knowledge Service. Major changes to the A&A package may require reviewing and updating all the documentation associated with the change. The Contractor's cloud computing systems shall comply with FedRAMP and VA Directive 6517 requirements.
- c. The Contractor shall return all electronic storage media (hard drives, optical disks, CDs, back-up tapes, etc.) on non-VA leased or non-VA owned IT equipment used to store, process or access VA information to VA in accordance with A&A package requirements. This applies when the contract is terminated or completed and prior to disposal of media. The Contractor shall provide its plan for destruction of all VA data in its possession according to VA Information Security Knowledge Service requirements and NIST 800-88. The Contractor shall send a self-certification that the data destruction requirements above have been met to the COR/CO within 30 business days of termination of the contract.
- d. If external internet connections to VA network involving VA information must be in accordance with VA Trusted Internet Connection (TIC) Reference Architecture and VA Directive and Handbook 6513, Secure External Connections and reviewed and approved by VA prior to implementation. Government-owned Contractor-operated systems, third party or business partner networks require a Memorandum of Understanding (MOU) and Interconnection Security Agreements (ISA).
- e. Contractor procedures shall be subject to periodic, announced, or unannounced assessments by VA officials, the OIG or a 3PAO. The physical security aspects associated with Contractor activities are also subject to such assessments. The Contractor shall report, in writing, any deficiencies noted during the above assessment to the VA COR/CO. The Contractor shall use VA's defined processes to document planned remedial actions that address identified deficiencies in information security policies, procedures, and practices. The Contractor shall correct security deficiencies within the timeframes specified in the VA Information Security Knowledge Service.
- f. All major information system changes which occur in the production environment shall be reviewed by the VA to determine the impact on privacy and security of the system. Based on the review results, updates to the Authority to Operate (ATO) documentation and parameters may be required to remain in compliance with VA Handbook 6500 and VA Information Security Knowledge Service requirements.
- g. The Contractor shall conduct an annual privacy and security self-assessment on all information systems and outsourced services as required. Copies of the assessment shall be provided to the COR/CO. The VA/Government reserves the right to conduct assessment using government personnel or a third-party if deemed necessary. The Contractor shall correct or mitigate any weaknesses discovered during the assessment.

- h. VA prohibits the installation and use of personally owned or Contractor-owned equipment or software on VA information systems. If non-VA owned equipment must be used to fulfill the requirements of a contract, it must be stated in the service agreement, SOW, PWS, PD or contract. All security controls required for government furnished equipment must be utilized in VA approved Other Equipment (OE). Configuration changes to the Contractor OE, must be funded by the owner of the equipment. All remote systems must use a VA-approved antivirus software and a personal (host-based or enclave based) firewall with a VA-approved configuration. The Contractor shall ensure software on OE is kept current with all critical updates and patches. Owners of approved OE are responsible for providing and maintaining the anti-virus software and the firewall on the non-VA owned OE. Approved Contractor OE will be subject to technical inspection at any time.
- i. The Contractor shall notify the COR/CO within one hour of disclosure or successful exploits of any vulnerability which can compromise the confidentiality, integrity, or availability of the information systems. The system or effected component(s) need(s) to be isolated from the network. A forensic analysis needs to be conducted jointly with VA. Such issues will be remediated as quickly as practicable, but in no event longer than the timeframe specified by VA Information Security Knowledge Service. If sensitive personal information is compromised reference VA Handbook 6500.2 and Section 5, Security Incident Investigation.
- j. For cases wherein the Contractor discovers material defects or vulnerabilities impacting products and services they provide to VA, the Contractor shall develop and implement policies and procedures for disclosure to VA, as well as remediation. The Contractor shall, within 30 business days of discovery, document a summary of these vulnerabilities or defects. The documentation will include a description of the potential impact of each vulnerability and material defect, compensating security controls, mitigations, recommended corrective actions, root cause analysis and/or workarounds (i.e., monitoring). Should there exist any backdoors in the products or services they provide to VA (referring to methods for bypassing computer authentication), the Contractor shall provide the VA CO/CO written assurance they have permanently remediated these backdoors.
- k. All other vulnerabilities, including those discovered through routine scans or other assessments, will be remediated based on risk, in accordance with the remediation timelines specified by the VA Information Security Knowledge Service and/or the applicable timeframe mandated by Cybersecurity & Infrastructure Security Agency (CISA) Binding Operational Directive (BOD) 22-01 and BOD 19-02 for Internet-accessible systems. Exceptions to this paragraph will only be granted with the approval of the COR/CO.

B8. SECURITY AND PRIVACY CONTROLS COMPLIANCE TESTING, ASSESSMENT AND AUDITING

- a. Should VA request it, the Contractor shall provide a copy of their (corporation's, sole proprietorship's, partnership's, limited liability company (LLC), or other

business structure entity's) policies, procedures, evidence and independent report summaries related to specified cybersecurity frameworks (International Organization for Standardization (ISO), NIST Cybersecurity Framework (CSF), etc.). VA or its third-party/partner designee (if applicable) are further entitled to perform their own audits and security/penetration tests of the Contractor's IT or systems and controls, to ascertain whether the Contractor is complying with the information security, network or system requirements mandated in the agreement between VA and the Contractor.

- b. Any audits or tests of the Contractor or third-party designees/partner VA elects to carry out will commence within 30 business days of VA notification. Such audits, tests and assessments may include the following: (a): security/penetration tests which both sides agree will not unduly impact Contractor operations; (b): interviews with pertinent stakeholders and practitioners; (c): document review; and (d): technical inspections of networks and systems the Contractor uses to destroy, maintain, receive, retain, or use VA information.
- c. As part of these audits, tests and assessments, the Contractor shall provide all information requested by VA. This information includes, but is not limited to, the following: equipment lists, network or infrastructure diagrams, relevant policy documents, system logs or details on information systems accessing, transporting, or processing VA data.
- d. The Contractor and at its own expense, shall comply with any recommendations resulting from VA audits, inspections and tests. VA further retains the right to view any related security reports the Contractor has generated as part of its own security assessment. The Contractor shall also notify VA of the existence of any such security reports or other related assessments, upon completion and validation.
- e. VA appointed auditors or other government agency partners may be granted access to such documentation on a need-to-know basis and coordinated through the COR/CO. The Contractor shall comply with recommendations which result from these regulatory assessments on the part of VA regulators and associated government agency partners.

B9. PRODUCT INTEGRITY, AUTHENTICITY, PROVENANCE, ANTI-COUNTERFEIT AND ANTI-TAMPERING

- a. The Contractor shall comply with Code of Federal Regulations (CFR) Title 15 Part 7, "Securing the Information and Communications Technology and Services (ICTS) Supply Chain", which prohibits ICTS Transactions from foreign adversaries. ICTS Transactions are defined as any acquisition, importation, transfer, installation, dealing in or use of any information and communications technology or service, including ongoing activities, such as managed services, data transmission, software updates, repairs or the platforming or data hosting of applications for consumer download.
- b. When contracting terms require the Contractor to procure equipment, the Contractor shall purchase or acquire the equipment from an Original Equipment

Manufacturer (OEM) or an authorized reseller of the OEM. The Contractor shall attest that equipment procured from an OEM or authorized reseller or distributor are authentic. If procurement is unavailable from an OEM or authorized reseller, the Contractor shall submit in writing, details of the circumstances prohibiting this from happening and procure a product waiver from the VA COR/CO.

- c. All Contractors shall establish, implement, and provide documentation for risk management practices for supply chain delivery of hardware, software (to include patches) and firmware provided under this agreement. Documentation will include chain of custody practices, inventory management program, information protection practices, integrity management program for sub-supplier provided components, and replacement parts requests. The Contractor shall make spare parts available. All Contractor(s) shall specify how digital delivery for procured products, including patches, will be validated and monitored to ensure consistent delivery. The Contractor shall apply encryption technology to protect procured products throughout the delivery process.
- d. If a Contractor provides software or patches to VA, the Contractor shall publish or provide a hash conforming to the FIPS Security Requirements for Cryptographic Modules (FIPS 140-2 or successor).
- e. The Contractor shall provide a software bill of materials (SBOM) for procured (to include licensed products) and consist of a list of components and associated metadata which make up the product. SBOMs must be generated in one of the data formats defined in the National Telecommunications and Information Administration (NTIA) report "The Minimum Elements for a Software Bill of Materials (SBOM)."
- f. Contractors shall use or arrange for the use of trusted channels to ship procured products, such as U.S. registered mail and/or tamper-evident packaging for physical deliveries.
- g. Throughout the delivery process, the Contractor shall demonstrate a capability for detecting unauthorized access (tampering).
- h. The Contractor shall demonstrate chain-of-custody documentation for procured products and require tamper-evident packaging for the delivery of this hardware.

B10. CRYPTOGRAPHIC REQUIREMENT

- a. The Contractor shall document how the cryptographic system supporting the Contractor's products and/or services protect the confidentiality, data integrity, authentication and non-repudiation of devices and data flows in the underlying system.
- b. The Contractor shall use only approved cryptographic methods as defined in FIPS 140-2 (or its successor) and NIST 800-52 standards when enabling encryption on its products.

- c. The Contractor shall provide or arrange for the provision of an automated remote key-establishment method which protects the confidentiality and integrity of the cryptographic keys.
- d. The Contractor shall ensure emergency re-keying of all devices can be remotely performed within 30 business days.
- e. The Contractor shall provide or arrange for the provision of a method for updating cryptographic primitives or algorithms.

SECTION C - CONTRACT CLAUSES

C.1 NASA SEWP V RFQ INTRODUCTORY LANGUAGE

All clauses and provisions from the Federal Acquisition Regulation (FAR), NASA FAR Supplement, and the Goddard Space Flight Center Regulation from the applicable NASA Solutions for Enterprise-Wide Procurement (SEWP) V Government-Wide Acquisition Contract (GWAC) are hereby incorporated by reference. The full text of any FAR and NASA SEWP V clauses which are incorporated by reference may be obtained at the following URLs:

FAR: https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52#FAR_52_203_2

NASA SEWP V: [SEWP V Full Contract Clause List \(JAN 2026\)](#)

C.2 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at the following URLs:

FAR: https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52#FAR_52_203_2

VAAR: <https://www.va.gov/oal/library/vaar/>

(End of Clause)

FAR #	Title	Date
52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	JUN 2020
52.203-13	CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT	NOV 2021
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.203-19	PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS	JAN 2017
52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS (DEVIATION)	NOV 2025
52.204-13	SYSTEM FOR AWARD MANAGEMENT-MAINTENANCE (DEVIATION)	NOV 2025
52.204-19	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS	DEC 2014
52.209-9	UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (DEVIATION)	NOV 2025
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (DEVIATION)	NOV 2025
52.212-4	TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION)	OCT 2025
52.219-6	NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (DEVIATION)	NOV 2025
52.219-8	UTILIZATION OF SMALL BUSINESS CONCERNS (DEVIATION)	NOV 2025
52.219-28	POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (DEVIATION)	NOV 2025
52.222-19	CHILD LABOR —COOPERATION WITH AUTHORITIES AND REMEDIES (DEVIATION)	NOV 2025
52.222-35	EQUAL OPPORTUNITY FOR VETERANS (DEVIATION)	NOV 2025
52.222-37	EMPLOYMENT REPORTS ON VETERANS (DEVIATION)	NOV 2025
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEVIATION)	NOV 2025

52.222-50	COMBATING TRAFFICKING IN PERSONS (DEVIATION)	NOV 2025
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.227-1	AUTHORIZATION AND CONSENT	JUN 2020
52.227-2	NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT	JUN 2020
52.227-14	RIGHTS IN DATA- GENERAL	MAY 2014
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.233-1	DISPUTES (DEVIATION)	NOV 2025
52.233-3	PROTEST AFTER AWARD (DEVIATION)	NOV 2025
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (DEVIATION)	NOV 2025
52.237-3	CONTINUITY OF SERVICES	JAN 1991
52.240-91	SECURITY PROHIBITIONS AND EXCLUSIONS ALTERNATE I (DEVIATION)	NOV 2025
52.240-93	BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (DEVIATION)	NOV 2025
52.242-13	BANKRUPTCY	JUL 1995
VAAR #	Title	Date
852.201-70	CONTRACTING OFFICER'S REPRESENTATIVE	DEC 2022
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.204-70	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	MAY 2020
852.222-71	COMPLIANCE WITH EXECUTIVE ORDER 13899	APR 2025
852.232-72	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS	NOV 2018
852.239-70	SECURITY REQUIREMENTS FOR INFORMATION TECHNOLOGY RESOURCES	FEB 2023
852.239-71	INFORMATION SYSTEM SECURITY PLAN AND ACCREDITATION	FEB 2023
852.239-73	INFORMATION SYSTEM HOSTING, OPERATION, MAINTENANCE, OR USE	FEB 2023
852.239-74	SECURITY CONTROLS COMPLIANCE TESTING	FEB 2023
852.242-71	ADMINISTRATIVE CONTRACTING OFFICER	OCT 2020
852.246-71	REJECTED GOODS	OCT 2018

C.3 FAR 52.209-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (DEVIATION) (NOV 2025)

(a) *Definition.* As used in this clause—

Commercially available off-the-shelf (COTS) item

- (1) Means any item of supply (including construction material) that is—
 - (i) A commercial product (as defined in paragraph (1) of the definition of “commercial product” in Federal Acquisition Regulation (FAR) 2.101);
 - (ii) Sold in substantial quantities in the commercial marketplace; and
 - (iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and
- (2) Does not include bulk cargo, as defined in [46 U.S.C. 40102\(4\)](#), such as agricultural products and petroleum products.

(b) The Government suspends or debar Contractors to protect the Government's interests. Other than a subcontract for a commercially available off-the-shelf item, the Contractor shall not enter into any subcontract, in excess of the threshold specified in FAR 9.405-2(b) on the date of subcontract award, with a Contractor that is debarred, suspended, or proposed for debarment by any executive agency unless a compelling reason exists to do so.

(c) The Contractor shall require each proposed subcontractor whose subcontract will exceed the threshold specified in FAR 9.405-2(b) on the date of subcontract award, other than a subcontractor providing a commercially available off-the-shelf item, to disclose to the Contractor, in writing, whether as of the time of award of the subcontract, the subcontractor, or its principals, is or is not debarred, suspended, proposed for debarment, or voluntarily excluded by the Federal Government.

(d) A corporate officer or a designee of the Contractor shall notify the Contracting Officer, in writing, before entering into a subcontract with a party (other than a subcontractor providing a commercially available off-the-shelf item) that is debarred, suspended, proposed for debarment, or voluntarily excluded (see FAR 9.404 for information on the System for Award Management (SAM) Exclusions). The notice must include the following:

- (1) The name of the subcontractor.
- (2) The Contractor's knowledge of the reasons for the subcontractor being listed with an exclusion in SAM.
- (3) The compelling reason(s) for doing business with the subcontractor notwithstanding its being listed with an exclusion in SAM.
- (4) The systems and procedures the Contractor has established to ensure that it is fully protecting the Government's interests when dealing with such subcontractor in view of the specific basis for the party's debarment, suspension, proposed debarment, or voluntary exclusion.

(e) *Subcontracts*. Unless this is a contract for the acquisition of commercial products or commercial services, the Contractor shall include the requirements of this clause, including this paragraph (e) (appropriately modified for the identification of the parties), in each subcontract that—

- (1) Exceeds the threshold specified in FAR 9.405-2(b) on the date of subcontract award; and
- (2) Is not a subcontract for commercially available off-the-shelf items.

(End of clause)

C.4 FAR 52.217-7 OPTION FOR INCREASED QUANTITY-SEPARATELY PRICED LINE ITEM (MAR 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor **at any time during the contract performance but in no instance later than the contract**

expiration date. Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

(End of clause)

C.5 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the **final option period, to include the optional tasks (if exercised)**, in the Order These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed **6 months**. The Contracting Officer may exercise the option by written notice to the Contractor before Order expires.

(End of Clause)

C.6 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this Order by written notice to the Contractor prior to Order expiration; provided that the Government gives the Contractor a preliminary written notice of its intent to extend before the Order expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended Order shall be considered to include this option clause.

(c) The total duration of this Order, including the exercise of any options under this clause, shall not exceed **54 months**.

(End of Clause)

C.7 VAAR LIQUIDATED DAMAGES—REIMBURSEMENT FOR DATA BREACH COSTS (FEB 2023) ALTERNATE I (FEB 2023)

(a) *Definition.* As used in this clause, “contract” means any contract, agreement, order or other instrument and encompasses the definition set forth in FAR 2.101.

(b) *Non-disclosure requirements.* As a condition of performance under a contract, order, agreement, or other instrument that requires access to sensitive personal information as defined in VAAR 802.101, the following is expressly required—

(1) The Contractor, subcontractor, their employees or business associates shall not, directly or through an affiliate or employee of the Contractor, subcontractor, or business associate, disclose sensitive personal information to any other person unless the disclosure is lawful and is expressly permitted under the contract; and

(2) The Contractor, subcontractor, their employees or business associates shall immediately notify the Contracting Officer and the Contracting Officer’s Representative (COR) of any security incident that occurs involving sensitive personal information.

(c) *Liquidated damages.* If the Contractor or any of its agents fails to protect VA sensitive personal information or otherwise engages in conduct which results in a data

breach, the Contractor shall, in place of actual damages, pay to the Government liquidated damages of _\$37.50_ per affected individual in order to cover costs related to the notification, data breach analysis and credit monitoring. In the event the Contractor provides payment of actual damages at an amount determined to be adequate by the Contracting Officer, the Contracting Officer may forgo collection of liquidated damages.

(d) *Purpose of liquidated damages.* Based on the results from VA's determination that there was a data breach caused by Contractor's or any of its agents' failure to protect or otherwise engaging in conduct to cause a data breach of VA sensitive personal information, and as directed by the Contracting Officer, the Contractor shall be responsible for paying to the VA liquidated damages in the amount of _\$37.50_ per affected individual to cover the cost of the following:

- (1) Notification related costs.
- (2) Credit monitoring reports.
- (3) Data breach analysis and impact.
- (4) Fraud alerts.
- (5) Identity theft insurance.

(e) *Relationship to termination clause, if applicable.* If the Government terminates this contract in whole or in part under the Termination for cause paragraph, FAR 52.212-4(m), Contract Terms and Conditions—Commercial Products and Commercial Services, the Contractor is liable for damages accruing until the Government reasonably obtains delivery or performance of similar supplies or services. These damages are in addition to costs of repurchase as may be required under the Termination clause.

(End of Clause)

C.8 VAAR 852.239-76 INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY (FEB 2023)

(a) All information and communication technology (ICT) (formerly referred to as electronic and information technology (EIT)) supplies, information, documentation and services support developed, acquired, maintained or delivered under this contract or order must comply with the "Architectural and Transportation Barriers Compliance Board Electronic and Information Technology (EIT) Accessibility Standards" (see 36 CFR part 1194). Information about Section 508 is available at <http://www.section508.va.gov/>.

(b) The Section 508 accessibility standards applicable to this contract or order are identified in the specification, statement of work, or performance work statement. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(c) The Section 508 accessibility standards applicable to this contract are: **as defined within this solicitation and any resultant contract.**

(d) In the event of a modification(s) to this contract or order, which adds new EIT supplies or services or revises the type of, or specifications for, supplies or services, the Contracting Officer may require that the Contractor submit a completed VA Section 508 Checklist and any other additional information necessary to assist the Government in determining that the ICT supplies or services conform to Section 508 accessibility standards. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(e) If this is an Indefinite-Delivery type contract, a Blanket Purchase Agreement or a Basic Ordering Agreement, the task/delivery order requests that include ICT supplies or services will define the specifications and accessibility standards for the order. In those cases, the Contractor may be required to provide a completed VA Section 508 Checklist and any other additional information necessary to assist the Government in determining that the ICT supplies or services conform to Section 508 accessibility standards. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the provided documentation, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(End of clause)

C.9 MANDATORY WRITTEN DISCLOSURES

Mandatory written disclosures required by FAR clause 52.203-13 to the Department of Veterans Affairs, Office of Inspector General (OIG) must be made electronically through the VA OIG Hotline at <https://www.vaoig.gov/hotline/online-forms> and clicking on "FAR Reporting Instructions." If you experience difficulty accessing the website, call the Hotline at 1-800-488-8244 for further instructions.

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

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SECTION E - SOLICITATION PROVISIONS

NEW SOLICITATION NOTICE

“System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.”

E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The Offeror is cautioned that the listed provisions may include blocks that must be completed by the Offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the Offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at the following URLs:

FAR: [https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52#FAR 52 203 2](https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52#FAR_52_203_2)

VAAR: <https://www.va.gov/oal/library/vaar/>

(End of Provision)

FAR #	Title	Date
52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION)	NOV 2025
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	JAN 2011
52.209-2	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS—REPRESENTATION (DEVIATION)	NOV 2025
52.212-1	INSTRUCTIONS TO OFFERORS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION)	OCT 2025
52.214-21	DESCRIPTIVE LITERATURE	APR 2002
52.217-5	EVALUATION OF OPTIONS (DEVIATION)	NOV 2025
52.229-11	TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (DEVIATION)	SEP 2025
52.240-90	SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (DEVIATION)	NOV 2025
VAAR #	Title	Date
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	OCT 2018
852.233-71	ALTERNATE PROTEST PROCEDURE	OCT 2018

852.239-71	INFORMATION SYSTEM SECURITY PLAN AND ACCREDITATION	FEB 2023
852.239-75	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE	FEB 2023
852.273-74	AWARD WITHOUT EXCHANGES	NOV 2021

E.2 52.209-5 CERTIFICATION REGARDING RESPONSIBILITY MATTERS (DEVIATION) (NOV 2025)

(a) (1) The Offeror certifies, to the best of its knowledge and belief, that—

(i) The Offeror and/or any of its Principals—

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

E.3 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (DEVIATION) (NOV 2025)

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the SAM Responsibility / Qualification (Formerly FAPIIS) Summary is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in SAM Responsibility/Qualification (Formerly FAPIIS) Summary as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

E.4 52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (DEVIATION) (NOV 2025)

(a) The Government will not enter into a contract with any corporation that—

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless

an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that—

- (1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and
- (2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

E.5 52.216-1 TYPE OF CONTRACT (DEVIATION) (OCT 2025)

The Government contemplates award of a Firm-Fixed-Price Order resulting from this solicitation.

(End of Provision)

E.6 52.233-2 SERVICE OF PROTEST (DEVIATION) (NOV 2025)

a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.

Hand-Carried Address:

Kendra M. Casebolt
Department of Veterans Affairs
Technology Acquisition Center
23 Christopher Way
Eatontown NJ 07724

Mailing Address:

Kendra M. Casebolt
Department of Veterans Affairs
Technology Acquisition Center
23 Christopher Way
Eatontown, NJ 07724

(b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

E.7 BASIS FOR AWARD

Award will be based on the lowest priced, responsive, responsible Offeror whose quote conforms to the requirements set forth in this solicitation. The total evaluated price shall

be the sum of all proposed CLIN(s)/SLIN(s) set forth in Section B.4 Price Schedule of this solicitation. All Offerors must submit a quote on an “All or None” basis.

All Offerors are advised that, in the interest of efficiency, the Government reserves the right to conduct the evaluation in the most effective manner. Specifically, the Government may first evaluate the total proposed price of all offerors. Thereafter, the Government will evaluate the quote of the lowest priced Offeror only. If the lowest priced Offeror’s quote is determined to conform to the requirements, the Government may make award to that Offeror without further evaluation of the remaining Offerors’ quotes. If it is determined that the lowest priced Offeror’s quote does not conform to the requirement, then the Government may evaluate the next lowest priced quote, and so forth and so on, until the Government reaches the lowest priced quote that is determined to conform to the stated requirements. However, the Government reserves the right to evaluate all Offerors’ quotes should it desire to conduct discussions or otherwise determine it to be in the Government’s best interest. The Government reserves the right to award without discussions based upon the initial evaluation of the responses to this solicitation. The Government reserves the right to make no award from this solicitation.

E.8 SUBMISSION INSTRUCTIONS

All quotes shall be subject to evaluation by a team of Government personnel. The Government intends to award without discussions based upon the initial evaluation of quotes.

Quotes shall be submitted via the NASA SEWP website at: <https://www.sewp.nasa.gov> under this solicitation number. If there is a problem with the NASA SEWP website, then submit your quote by email with your company information to Kendra.Casebolt@va.gov and William.Waterhouse@va.gov by the due date and time specified above in Block 8 on page 1 of the SF1449. Please note that file size for submission via email is limited to less than 5 MB. If your file exceeds the size limit, then send multiple emails. The use of hyperlinks or embedded attachments in quotes is prohibited. Accordingly, any information contained within an embedded attachment and/or hyperlink will neither be accessed nor evaluated. Your response must be received by the closing date indicated on the NASA SEWP website for the quote, which is also noted above in Block 8 on page 1 of the SF1449, to be considered timely for award of an Order. Multiple quotes are not permitted and shall not be considered for award.

The quote shall be submitted in accordance with FAR 52.212-1 as supplemented by the below:

- a) Offerors shall complete Section B.4, Price Schedule, with prices for all items in the solicitation and submit with their quote; if none, then enter \$0. All prices shall contain no more than two decimal places. For each priced line item, ensure the “Unit price” column multiplied by the “Quantity” column equals the “Total Price” column. Offerors are cautioned that alterations to the line items will not be accepted and will render quotes unacceptable. Offerors must submit a quote on an “all or none” basis.

- b) All Offerors are cautioned that any deviation from the Government's minimum terms and conditions set forth in this solicitation may result in your offer being deemed by the Government to be non-conforming to the requirements and excluded from consideration for award. Accordingly, Offerors are hereby advised that any Offeror-imposed terms and conditions and/or assumptions which deviate from the Government's material terms and conditions established by the solicitation, may render the Offerors' quote Unacceptable, and thus ineligible for award. This may include, but is not limited to, quotes predicated on incorporation of commercial software license agreements.
- c) Offerors must meet all the requirements listed in Sections B.4 Price Schedule, and B.5 Product Description and have each requirement outlined in their quote to include a description of the items being offered in sufficient detail to evaluate conformance with the requirements in this solicitation. No assumptions of compatibility will be made on the part of VA. Failure to list all requirements in their entirety in an Offeror's quote will result in a noncompliant quote.
- d) Each Offeror SHALL provide with its quote/proposal a letter from the OEM for any and all proposed products certifying that the Offeror or the Offeror's teaming partner, if acquiring the product through a teaming partner, is authorized to sell and provide the proposed product(s) as of the date of the submission of the quote/proposal. The OEM letter shall be provided on the OEM's letterhead and signed by an authorized representative of the OEM. Additionally, the Offerors quote/proposal shall explicitly self-certify that it will not provide Gray Market Goods and/or Counterfeit Electronic Parts, and that it has the level of certification/specialization, as required by the OEM(s), to support authorized product sale and pricing for the products proposed. Failure to include the requisite OEM letter(s) and Offeror self-certification may render the Offeror's quote Unacceptable and thus, ineligible for award.

Any resulting contract will be awarded on a firm-fixed-price basis as defined by FAR Subpart 16.202. Accordingly, the Offeror shall ensure that any and all costs associated with the Offeror's proposed application(s), software products, software solution, and/or system, shall be included in the Offeror's proposed firm-fixed price, and shall serve as the Offeror's firm-fixed price for the life of any resulting contract. No additional costs or fees relative to the Offeror's proposed application(s), software products, software solution, and/or system including, but not limited to, licensing costs and any associated licensing maintenance required for the development, delivery, integration, operation, and/or maintenance of the Offeror's proposed solution will be allowed, accepted, and/or paid by the Government.

End of Document